THE CITY OF COLORADO SPRINGS

REQUEST FOR PROPOSAL

Services

R26-069MZ

Date Issued: September 15, 2026

CITY ADMINISTRATION BUILDING (CAB) BUILDING AUTOMATION SYSTEM (BAS) MODERNIZATION
THE CITY OF COLORADO SPRINGS

The City of Colorado Springs requests Firm Fixed Price (FFP) as detailed in this Request for Proposal (RFP), for CITY ADMINISTRATION BUILDING (CAB) BUILDING AUTOMATION SYSTEM (BAS) MODERNIZATION.

This RFP is posted to Rocky Mountain E-Purchasing BidNet Direct and the City of Colorado Springs' Procurement Services Website. It is available for all vendors free of charge, following free registration, at the Rocky Mountain E-Purchasing BidNet Direct website.

SUBMITTALS FOR THIS PROJECT WILL ONLY BE ACCEPTED ON THE ROCKY MOUNTAIN E-PURCHASING BIDNET DIRECT PLATFORM.

Please login to the following website to register (Free Registration) to submit a bid for this project. All required documents will be uploaded to the website.

https://www.bidnetdirect.com/

BIDNET Support

800-835-4603

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SECTION I – PROPOSAL INFORMATION

1.0 PROPOSAL INFORMATION

Section I provides general information to potential Offerors, such as proposal submission instructions and other similar administrative elements. This RFP is available on BidNet (www.bidnetdirect.com). All addenda or amendments shall be issues through BidNet and may not be available through any other source.

1.1 RFP SCHEDULE OF EVENTS

The upcoming schedule of events is as follows:

Event	**Date**
Issue Request for Proposal	September 15, 2026
Pre-Proposal Conference	September 25, 2026 1:00PM MDT

We will hold a pre-proposal conference at City Administration Building 30 S Nevada Ave Suite 102 Colorado Springs, CO 80903. This meeting is not mandatory. However, all Offerors are encouraged to attend.

Cut Off Date for Question	October 2, 2026 1:00PM MDT

Questions about the RFP must be submitted via email to the following email address: michael.zeller@coloradosprings.gov. A written response to any inquiry may be provided in the form of an Amendment to the solicitation. See 1.7 Amendments. Questions must be received no later than 1:00PM MDT October 2, 2026.

Requests for information or support shall be addressed to:

Mike Zeller
719-385-5264
Michael.zeller@coloradosprings.gov

DO NOT CONTACT ANY OTHER INDIVIDUAL AT THE CITY OF COLORADO SPRINGS REGARDING THIS SOLICITATION.

The only acceptable method of submitting questions is via BidNet to the Contracting Specialist named above. Faxes, email or physical mail delivery are not acceptable.

Proposal Due Date	October 15, 2026 2:00PM MDT
Interviews (if applicable)	TBD
Award of Contract	EST November 1, 2026
Notice to Proceed	EST November 30, 2026

1.2 SUBMISSION OF PROPOSALS

Proposals are to be submitted electronically on the BidNet Website (www.bidnetdirect.com). Please review the submission requirements *well in advance* of submission date and time; and allow for ample time to upload each required document.

It is recommended that Offerors begin the submission process at least one (1) day in advance of the proposal deadline.

Offerors are solely responsible to ensure their bid documents are uploaded and submitted correctly, and that a **confirmation number** is obtained upon successful submission.

Customer Support Team for www.bidnetdirect.com can be reached 1-800-835-4603.

1.3 NUMBER OF COPIES

One electronic proposal is to be submitted electronically on the BidNet Website (www.bidnetdirect.com).

1.4 SPECIAL TERMS

Please note the following definitions of terms as used herein:

The term “City” means the City of Colorado Springs.

The term “Contractor” or “Consultant” means the Offeror whose offer is accepted and is awarded the contract to provide the products or services specified in the RFP.

The term “Offer” means the proposal.

The term “Offeror” means the person, firm, or corporation that submits a formal proposal or offer and that may or may not be successful in being awarded the contract.

The term “Project” refers to City Administration Building (CAB) Building Automation System (BAS) Modernization.

The term “Request for Proposal” or “RFP” means this solicitation of a formal, negotiable proposal/offer. Any offer that is accepted will be the offer that is deemed by the City of Colorado Springs to be most advantageous in terms of the criteria designated in the RFP.

1.5 RFP OBJECTIVE

The objective of this RFP is to provide sufficient information to enable qualified Offerors to submit written proposals to the City of Colorado Springs. The RFP is not a contractual offer or commitment to purchase products or services. The Offeror may present options and variables to the scope while still meeting the minimum requirements of this solicitation. Innovative proposals/solutions are encouraged and considered in the selection and/or award.

All information included in proposals must be legible. Any and all corrections and or erasures must be initialed by Offeror. Each proposal shall be accompanied by a cover letter signed by an

authorized representative of the Offeror. The contents of the proposal submitted by the successful Offeror may become part of any contract awarded as a result of this solicitation.

1.6 CONFIDENTIAL OR PROPRIETARY INFORMATION

If an Offeror believes that parts of an offer are confidential, then the Offeror must so specify. The Offeror must include in bold letters the term “CONFIDENTIAL” on that part of the offer which the Offeror believes to be confidential. The Offeror must submit in writing specific detailed reasons, including any relevant legal authority, stating why the Offeror believes the material to be confidential. Vague and general claims as to confidentiality will not be accepted. The City of Colorado Springs will be the sole judge as to whether a claim is acceptable. Decisions regarding the confidentiality of information will be made when requests are made to make the information public. All offers and parts of offers, which are not marked as confidential, will automatically be considered public information after the contract is awarded. The successful offer may be considered public information even though parts are marked confidential.

1.7 AMENDMENTS

Amendments to this RFP may be issued at any time prior to the time set for receipt of proposals. Offerors are required to acknowledge receipt of any amendments issued to this RFP by returning a signed copy of each amendment issued. Signed copies of each amendment must be received on or before the time set for receipt of offers.

The City of Colorado Springs will post all amendments on the BidNet Website (www.bidnetdirect.com). It is the Offeror's responsibility to check the website for posted amendments or contact the Contracts Specialist listed to confirm the number of amendments which have been issued.

1.8 WITHDRAWAL OR MODIFICATION OF OFFERS

Any Offeror may modify or withdraw an offer in writing at any time prior to the deadline for submission of an offer.

1.9 ACCEPTANCE

Any offer received and not withdrawn shall be considered an offer, which may be accepted by the City of Colorado Springs based on initial submission without discussions or negotiations.

By submitting an offer in response to this solicitation, the Offeror agrees that any offer it submits may be accepted by the City of Colorado Springs at any time within 90 calendar days from the date of submission deadline.

The City of Colorado Springs reserves the right (a) to reject any or all offers,(b) to waive informalities and minor irregularities in offers received, and/or (c) to accept any portion of an offer if deemed in the best interest of the City of Colorado Springs. Failure of the Offeror to provide in its offer any information requested in the RFP may result in rejection of the offer for non-responsiveness.

1.10 PROPOSAL PREPARATION COST

The cost of proposal preparation is not a reimbursable cost. Proposal preparation shall be at the

Offeror's sole expense and is the Offeror's total and sole responsibility.

1.11 AWARD

The City of Colorado Springs intends to make one award, using the evaluation criteria listed in this RFP, to determine the best value, considering all factors and criteria in the proposals submitted. Best value means the expected outcome of an acquisition that, in the City's estimation, provides the greatest overall benefit in response to the requirements detailed in the RFP. The City of Colorado Springs reserves the right to reject any or all offers and to not make an award.

1.12 PERFORMANCE PERIOD

The performance period for the project detailed in this RFP will be established as:
NOTICE TO PROCEED THROUGH DECEMBER 31, 2027.

1.13 DEBRIEFING

Offerors not selected may request a debriefing on the selection process as well as discussion of the strengths and weaknesses of their proposal upon receipt of notification that their offer was not selected.

A debriefing may be scheduled by contacting the Contracts Specialist listed above. The Contracts Specialist must receive a written request for debriefing no later than ten (10) calendar days after issuance of a notification that the Offeror's offer was not selected.

1.14 SUBSTANTIVE PROPOSALS

By responding to this RFP, the Offeror certifies (a) that Offeror's proposal is genuine and is not made in the interest of, or on behalf of, an undisclosed person, firm, or corporation; (b) that Offeror has not directly or indirectly induced or solicited any other Offerors to put in a false or sham proposal; (c) that Offeror has not solicited or induced any other person, firm, or corporation to refrain or abstain from proposing an offer or proposal; (d) that Offeror has not sought by collusion to obtain for themselves any advantage over any other Offerors or over the City of Colorado Springs; and (e) that Offeror has not violated or caused any person to violate, and shall not violate or cause any person to violate, the City's Code of Ethics contained in Article 3, of Chapter 1 of the City Code and in the City's Procurement Rules and Regulations.

1.15 OFFEROR'S QUALIFICATIONS

Each Offeror must complete Exhibit 1 – Qualification Statement.

No contract will be awarded to any Offeror who is in arrears to the City, upon any debt or contract, or who is in default, in any capacity, upon any obligation to the City or is deemed to be irresponsible or unreliable by the City based on past performance.

1.16 NON-COLORADO ENTITIES

If Offeror is a foreign entity, Offeror shall comply with C.R.S. section 7-90-801, "Authority to transact business or conduct activities required," and section 7-90-802, "Consequences of transacting business or conducting activities without authority."

Before or at the time that the contract is awarded to an entity organized or operating outside the State of Colorado, such entity shall obtain authorization to do business in the State of Colorado, designate a place of business herein, and appoint an agent for service of process.

Such entity must furnish the City of Colorado Springs with a certificate from the Secretary of the State of Colorado to the effect that a certificate of authority to do business in the State of Colorado has been issued by that office and is still valid. The entity shall also provide the City with a certified copy of the designation of place of business and appointment of agent for service of process from the Colorado Secretary of State, or a letter from the Colorado Secretary of State that such designation of place of business and agent for service of process has been made.

1.17 PROCUREMENT RULES AND REGULATIONS

All projects advertised by the City of Colorado Springs are solicited in accordance with the City's Procurement Rules and Regulations. The City's Procurement Rules and Regulations can be reviewed and/or downloaded from the City website https://www.coloradosprings.gov. The Contracts Specialist may also provide a soft copy of the Rules and Regulations upon request. Any discrepancies regarding conflicting statements, decisions, irregularities, clauses, or specifications will be rectified utilizing the City's Procurement Rules and Regulations, when applicable. It is the Offeror's responsibility to advise the Contracts Specialist listed in this RFP of any perceived discrepancies prior to the date and time the offer is due.

1.18 FAIR TREATMENT OF OFFERORS

The City Procurement Services Division shall be responsible for ensuring the procurement of products, commodities, and services in a manner that affords all responsible businesses a fair and equal opportunity to compete. If an Offeror believes that a procurement is not conducted in a fair and equitable manner, the Offeror is encouraged to inform the City Procurement Services Manager as soon as possible.

1.19 ORDER OF PRECEDENCE

Any inconsistency in this solicitation shall be resolved by giving precedence in the following order:

A. Sections I-IV of this Solicitation
B. Statement of Work
C. Other Appendices, Schedules, Exhibits, or Attachments

1.20 SALES TAX

The successful Offeror, if awarded a contract, shall apply to the Colorado Department of Revenue for a tax-exempt certificate for this project. The certificate does not apply to City of Colorado Springs Sales and Use Tax which shall be applicable and should be included in all proposals. The tax-exempt project number and the exemption certificate only apply to County, PPRTA (Pikes Peak Rural Transportation Authority), and State taxes when purchasing construction and building materials **to be incorporated into this project**.

Furthermore, the exemption **does not** include or apply to the purchase or rental of equipment, supplies or materials that **do not become a part of the completed project or structure**. In these instances, the purchase or rental is subject to full taxation at the current taxation rate.

The Offeror and all subcontractors shall include in their Offer City of Colorado Springs Sales and Use Tax on the work covered by the offer, and all other applicable taxes.

Forms and instructions can be downloaded at https://coloradosprings.gov/sales-tax. Questions can be directed to the City Sales Tax Division at (719) 385-5903 or SalesTax@coloradosprings.gov.

Our Registration Numbers are as follows:
City of Colorado Springs
Federal I.D.: 84-6000573
Federal Excise: A-138557
State Sales Tax: 98-03479

1.21 INTERPRETATION OF PLANS AND SPECIFICATIONS

Any change to proposal forms, plans, or specifications prior to the opening of proposals will be issued by the City in the form of an Amendment. Certain individuals may be named in the RFP that have authority to provide information, clarification or interpretation to Offerors prior to opening of proposals. Information obtained from persons other than those named individuals is invalid and shall not be used for proposal purposes.

1.22 COMBINATION OR CONDITIONAL PROPOSALS

If an RFP is issued for projects in combination and separately, the Offeror may submit proposals either on the combination or on separate units of the combination. The City reserves the right to make awards on combination or separate proposals to the advantage of the City. Combination proposals will be considered, only when specified.

1.23 ANTI-COLLUSION AFFIDAVIT

The Offeror by signing their proposal submitted to the City is certifying that the Offeror has not participated in any collusion or taken any action in restraint of free competitive bidding. This statement may also be in the form of an affidavit provided by the City and signed by the Offeror. The original of the signed anti-collusion affidavit, if separately required and provided with the RFP, shall be submitted with the proposal. The proposal will be rejected if it does not contain the completed anti-collusion affidavit.

SECTION II – PROPOSAL CONTENT

2.0 PROPOSAL CONTENT

Section II provides instructions regarding the format and content required for proposals submitted in response to this solicitation.

2.1 PROPOSAL FORMAT

Offeror's written proposal should include concise, but complete, information, emphasizing why the Offeror is best or best qualified to provide the required services. The Offeror's written proposal should include the information in the format outlined below and must be limited to no more than twenty-five (25) pages. **A page shall be defined as 8-1/2" x 11"; single sided, with one inch margins, and a minimum font of Times New Roman 10**. The only exception to the 8-1/2" x 11" paper size is the proposed project schedule. It may be submitted on 11" x 17" paper. Each 11" x 17" page for the schedule shall be counted in the overall page limitations above. Each section of the proposal should be labeled to clearly follow the requirements sections identified in this section of the RFP. The following listed Exhibits must be filled out and returned with the proposal and are not counted against the page limit:

Exhibit 1 Solicitation Qualifications Document
Appendix A Price Sheet
Signed Addenda, if applicable

2.2 COVER LETTER

The cover letter shall be no more than three pages. The cover letter shall contain at least the following information.

A. RFP Number and Project Name.
B. Statement that the Offeror is qualified to perform the work.
C. Certification Statement that the information and data submitted are true and complete to the best knowledge of the individual signing the letter.
D. Name, telephone number, email address, and physical address of the individual to contact regarding the proposal.
E. The signature of an authorized principal, partner, or officer of the Offeror.

2.3 PROPOSAL CERTIFICATION

The Offeror must fill out and submit Exhibit 1, Solicitation Qualifications Document, with its Proposal.

2.4 ORGANIZATIONAL BACKGROUND AND OVERVIEW

The Offeror must provide a brief history and overview of its company and its organizational structure, with special emphasis on how this project will fit within that structure. Also include principal place of business location(s), office locations, and size of firm. Financial stability information (annual public reports or private financial statements shall be included in an appendix or under separate cover; private financial information will be kept confidential by the City) may be requested during the proposal evaluation and award process.

2.5 PROPOSAL NARRATIVE/TECHNICAL AND MANAGEMENT APPROACH

In the proposal narrative/technical and management approach section, the Offeror should explain what the Offeror will do and how it will perform if awarded a contract.

2.5.1 TECHNICAL AREA

The Offeror must explain its overall solution, considering the scope of work or statement of work provided. The content must include, but not necessarily be limited to, the following information.

A. Understanding of and Compliance with Technical Requirements

In the Technical Area, the Offeror should address each work area in sufficient detail to demonstrate a clear and full understanding of the work necessary to complete the project. The proposal should not merely parrot the requirements of the RFP. Further, the Offeror should provide evidence of sufficient planning to ensure the work is completed on schedule and within budget. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions:

1. Does the proposal demonstrate a firm understanding of the requirements and goals of the Statement of Work, as well as industry standards and reasonable expectations for a company in the industry?
2. Does the proposal fully and completely address each requirement and goal of the Statement of Work?
3. Does the proposal provide solutions to indicate that requirements and goals will be met on schedule?
4. Does the technical solution seem realistic?
5. Does it generally appear that the Offeror knows and thoroughly understands the business and the RFP requirements?

B. Project Approach

In the Technical Area, the Offeror should clearly present proposed solutions and indicate that it has performed adequate planning to accomplish project tasks as defined in the Statement of Work. Innovations, efficiencies, and detailed specifics are all encouraged.

The Offeror must at least address the following areas:

1. Schedule Management. Discuss Offeror's approach to schedule management including updating and reporting progress of the work.
2. Quality Control. Discuss Offeror's quality control plan, processes and approach to ensure that the City receives a quality product.
3. Safety. Discuss Offeror's approach and commitment to safety for its workers, the public, and City employees, if services are accomplished on a City site.
4. Potential issues that Offeror foresees with this project and how Offeror would make adjustments if encountered.

It is highly recommended that the Offeror provides sufficient content and detail to answer completely the following questions.

1. Does the proposal include a complete plan to accomplish each requirement, including subcontracting (if applicable)?

2. Does the proposal demonstrate that appropriate and qualified personnel and equipment will be provided to carry out the requirement?
3. Is the proper level of effort directed toward each requirement? Does the level of effort look unrealistically low or unreasonably high?

2.5.2 MANAGEMENT AREA

Offeror must explain its method of managing the work to be performed. The content must include, but no necessarily be limited to, the following information.

A. Program Management Controls

In the Management Area, the Offeror should provide:

1. A plan of operation, to include management of personnel, workload, schedule, and budget
2. An organization chart which demonstrates clear and effective lines of authority, responsibility, and communication for management, supervisory, and technical personnel. The plan should address which job classification or personnel will be assigned to each task and how that determination is made. Basic human resource management concepts should be addressed, including hiring, firing, discipline, incentive plans, etc.
3. If the Offeror plans to subcontract more than 10% of the work, include information on how the Offeror plans to manage its subcontractors.
4. A detailed schedule for the project showing the key activities and how they will meet or improve the City's timeframe and maximize efficiency to provide the best value to the City and minimize impacts to the public. The schedule shall be based on the Offeror's understanding and approach to the work as addressed above. Schedules should address controls to ensure the project will remain on schedule and on budget.

It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions.

1. Does the proposal address the issues above in sufficient detail to demonstrate a sophisticated and mature management control system?
2. Are program management controls consistent with the technical portion of the proposal, especially regarding schedule and level of effort?
3. Do the plan and controls indicate that the Offeror will obtain, keep, and efficiently utilize high-quality personnel?
4. Does the proposal explain how the Offeror will address corrective actions in case of delays (e.g. expediting materials, additional resources, etc.)?
5. Does the proposal explain how the Offeror will remain within schedule and budget and provide a project timeline and implementation plan?
6. Does the proposal show that the Offeror has ability for alarm detection and City notification as shown in SOW?
7. Does the proposal show that the Offeror has the proper customer service and response as shown in SOW?

B. Past Performance/Relevant Experience

In the Management Area, the Offeror should provide at least three references or name contracts demonstrating that it successfully provided services/products that are the same or similar to those required in the RFP. The proposal should adequately explain how the projects were completed

on schedule and within budget. It is highly recommended that the Offeror provides sufficient content and detail to answer completely the following questions.

1. Does the proposal include at least three references or past performance citations?
2. Are the references or past performance citations relevant to the requirements of the Statement of Work of the RFP?
3. Does the Offeror explain how they were successful on the projects provided as past performance?
4. Does the Offeror apply the past performance to the City requirement in such a way as to demonstrate added value due to experience?

C. Key Personnel

In the Management Area, resumes must be provided for all personnel considered key, as required by the RFP. Resumes do not count toward the page limit. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions. Explain how the key personnel were related to the projects cited as relevant past performance.

1. Does the Offeror provide complete resumes, including education, experience, background information, accomplishments, and other pertinent information?
2. Does the Offeror provide resumes for all key personnel, as required by the RFP?
3. Do the resumes demonstrate adequate professional, technical, and management levels to accomplish the work effectively and efficiently?

2.6 PRICE AREA

In the Price Area, the Offeror should provide a detailed breakdown of the price for each year of performance. The price must be all-inclusive and include all unit costs for material, labor, other direct costs (e.g. travel), indirect costs (i.e. overhead and general and administrative costs), and profit/fee. Offers must include sufficient detail to allow insight into the fairness and reasonableness of the price. If the contract type will be Time and Material (T&M) labor categories, labor rates, separated profit, and estimated material costs must be included in detail.

In addition, although price may not be the most important factor, it is still very important to the City of Colorado Springs. The Offeror's pricing must be competitive as compared to the budget amount, market pricing in the industry, and the pricing of other Offerors. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions.

1. How does the price compare to the industry competition?
2. If low, is it unrealistically low?
3. If high, is there demonstrated added value for the additional cost?
4. Is the price itemized, so that it is clear how the cost was built? If so, do the costs look appropriate for the task?
5. Does the Offeror leave applicable costs out of the calculations? For instance, some will say travel is not included and will be an extra cost. This should be considered when comparing to other Offerors.
6. Are there additional costs not addressed that the City would incur if the Offeror were awarded the contract? If so, include those costs when comparing to the budget amount and the competition.

2.7 PROPOSAL PRESENTATION

Presentation is an important factor. Offerors should provide a highly professional product, which is complete, accurate, easily understood, and effectively presented.

2.8 EXCEPTIONS

All Offerors must complete Exhibit 1, Exceptions Form, found in the Solicitation Qualifications Document, and return it with their proposal. Some terms and conditions are not negotiable. Exceptions may be grounds for rendering the proposal unacceptable without further discussions.

2.9 INSURANCE REQUIREMENTS

All Offerors must complete Exhibit 1, Minimum Insurance Requirements, found in the Solicitation Qualifications Document, and return with their proposal. Lack of responsiveness in this area may be grounds for rendering the proposal unacceptable without further discussions.

SECTION III – EVALUATION FACTORS

3.0 EVALUATION AND AWARD

Section III provides information regarding evaluation criteria and scoring. It also includes information regarding proposal selection and award of the resultant contract.

3.1 EVALUATION CRITERIA

3.1.1 TECHNICAL AREA – UNDERSTANDING OF AND COMPLIANCE WITH TECHNICAL REQUIREMENTS

See Section II – Item 2.5.1A

3.1.2 TECHNICAL AREA – PROJECT APPROACH

See Section II - Item 2.5.1B

3.1.3 MANAGEMENT AREA – PROGRAM MANAGEMENT CONTROLS

See Section II – Item 2.5.2A

3.1.4 MANAGEMENT AREA – PAST PERFORMANCE/RELEVANT EXPERIENCE

See Section II – Item 2.5.2B

3.1.5 MANAGEMENT AREA – KEY PERSONNEL

See Section II – Item 2.5.2C

3.1.6 PRICE/COST AREA – PRICE/COST

See Section II – Item 2.6

3.1.7 PROPOSAL PRESENTATION AREA – PROPOSAL PRESENTATION

See Section II – Item 2.7

3.1.8 EXCEPTIONS AND INSURANCE

See Section II – Items 2.8 and 2.9

3.2 RANKING

A. The order of ranking or importance in the evaluation shall be as follows per grouping:

First: Price/Cost Area
Second: Technical Area
Third: Management Area
Fourth: Proposal Presentation Area

B. Definitions for scoring are as follows and apply to each grouping:

Exceptional – The proposal meets all and exceeds many of the requirements of the RFP to the benefit of the City, and the information provided is of such a nature as to answer all questions without need for further inquiry. There are no corrective actions required, and no compromise of requirements is needed.

Very Good – The proposal meets all and exceeds some of the requirements of the RFP to the benefit of the City, and the information provided is of such a nature as to answer most questions without need for further inquiry. There are no corrective actions required, and no compromise of requirements is needed.

Satisfactory – The proposal meets the requirements of the RFP, and the information provided is of such a nature as to answer many questions without need for further inquiry. There are very few corrective actions required, and no substantive compromise of requirements is needed.

Marginal – The proposal does not meet some of the requirements of the RFP, and the information provided is of such a nature as to require some clarification. There are some corrective actions required, and some non-substantive compromise of requirements is needed.

Unacceptable – The proposal does not meet many of the requirements of the RFP, and the information provided is of such a nature as to require much clarification. There are many corrective actions required, and substantive compromise of requirements is needed.

C. Area Scoring

The score for each area will be determined by multiplying the sum of the criteria in each area by the area evaluation factor. The area evaluation factors are as follows:

Price/Cost Area: 40 Points
Technical Area: 30 Points
Management Area: 25 Points
Proposal Presentation: 5 Points

D. Final/Overall scoring

The final proposal score will be determined by adding the area scoring. The sum of the area scores will be the final/overall score.

3.3 SELECTION COMMITTEE

A selection committee will review all proposals. Through this process, the City will determine which proposals are acceptable or unacceptable. The City will notify, in writing, the Offerors whose proposals are deemed to be unacceptable. Those Offerors offering proposals deemed to be acceptable by the City will be evaluated by grouping and scored by grouping by the selection committee. This scoring will determine which Offerors are considered to be in the competitive range and may be the basis for an award decision without further steps.

If the selection committee elects not to award based upon evaluation scoring, it may engage in a forced elimination process. To inform this process, it may require oral presentations or interviews with the Offerors considered to be in the competitive range. If oral presentations or interviews are conducted, they may also be scored, or they may simply be considered as information supporting the forced elimination process. The selection committee may request revisions to the proposal from each of the Offerors at the conclusion of the interviews. The intent of the forced elimination process is to reach consensus. The decision will be based on all relevant factors and based upon perception of best value. The final decision may or may not exactly reflect scoring ranking.

The City also reserves the right to request best and final offers from all Offerors at any point in the proposal evaluation process.

3.4 AWARD OF CONTRACT

It is anticipated that there will be negotiations or discussions with Offerors. However, the City reserves the right to award without negotiations or discussions. The City also reserves the right to award a contract not necessarily or merely to the Offeror with the most advantageous price. The City intends to award each grouping to the Offeror that demonstrates the best value to the City and the most substantiated ability to fulfill the requirements contained in this Request for Proposal. A contract or contracts prepared by the City will be finalized and/or negotiated with the successful Offeror(s). In the event a contract cannot be negotiated with the top-ranked Offeror, the City may enter into negotiations with the second highest-ranked Offeror, or the City may decide to call for new proposals. Immediately after the notice of award, the successful Offeror(s) will begin planning in conjunction with the City of Colorado Springs staff (to be designated by the City) to ensure fulfillment of all its obligations. The successful Offeror may be expected to attend regular meetings as required by the City to assist in the preparation for startup.

SECTION IV – RESERVED

SECTION V – EXHIBITS

5.0 EXHIBITS

Exhibit 1 Solicitation Qualifications Document
Exhibit 2 Sample Contract
Exhibit 3 Sample Evaluation Scoresheet

EXHIBIT 1 SOLICITATION QUALIFICATIONS DOCUMENTS

FOLLOWS THIS PAGE.

SOLICITATION QUALIFICATIONS DOCUMENTS

Please complete all sections of this document including the Solicitation Certification, Representations and Certifications, Qualification Statement, Exceptions, Minimum Insurance Requirements, and Signature Page.

Please submit all completed documents with your bid/ proposal and sign the Minimum Insurance Requirements and Signature Page.

Solicitation:

Solicitation Number:

Firm Name: _____ Date: _____

Address: _____

_____

Federal Tax ID #: _____

Tax Classification:

☐ Sole Proprietorship ☐ Partnership ☐ C Corporation

☐ S Corporation ☐ LLC ☐ Nonprofit

DUNS Number: _____

OFFEROR REPRESENTATIVE

Offeror has appointed the following as the offeror's representative and contact for all questions or clarifications in regard to this offeror.

Name: _____

Telephone: _____

E-mail: _____

SOLICITATION CERTIFICATION

PLACE OF BUSINESS

Company's Principal Place of Business

Does Offeror Have an established office or facility in Colorado Springs? ☐ YES ☐ NO

If Yes, Indicate address below if different from principal place of business.

Year Facility Was Established

Percent of Work to be performed from principal place of business.

Percent of Work to be performed from Colorado Springs Facility

INSURANCE

Indicate your ability to provide a certificate of insurance evidencing the required coverage types and limits specified in Minimum Insurance Requirements Exhibit. (The certificate of insurance must reflect the City of Colorado Springs as an Additional Insured, as applicable.)

Initial Here

Indicate your Ability to Comply with the following requirements:

The City shall be added as an Additional Insured to all liability policies

☐ YES ☐ NO

Your property and liability insurance company is licensed to do business in Colorado

☐ YES ☐ NO

Your property and liability insurance company has an AM best rating of not less than B+ and/or

☐ YES ☐ NO

Worker's Compensation Insurance is carried for all employees and covers work done in Colorado.

☐ YES ☐ NO

Provide the name of your property and liability insurance company here:

FINANCIAL STATEMENTS

☐ Current Financial Statements are not required for this solicitation.

☐ Current Financial Statements are required for this solicitation. Please include financial statements as a separate document with your proposal.

☐
Initial Here

COMPLETED PROPOSAL

Provide the completed and signed proposal. (Proposals must be identified as specified in this RFP document). All required Exhibits are attached.

☐
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ACKNOWLEDGE ADDENDUM

Offeror hereby acknowledges receipt of the following amendments, if applicable Offeror agrees that it is bound by all Amendments identified herein.

Addendum #1	*Initial Here*	Dated:
Addendum #2	*Initial Here*	Dated:
Addendum #3	*Initial Here*	Dated:
Additional Addendum, if issued	*Initial Here*	Dated:

REPRESENTATIONS AND CERTIFICATIONS

1. INSURANCE REQUIREMENTS

Offeror shall comply with all insurance requirements and will submit the Insurance Certificates prior to performance start date. If limits are different from the stated amounts, Offeror shall explain variance. Certain endorsements and "additionally insured" statements may require further clarification and specific statements on a project specific basis and should have been described in the Offeror's proposal.

Initial Here #1

2. ETHICS VIOLATIONS

a) The Offeror shall have in place and follow reasonable procedures designed to prevent and detect possible violations described in this clause in its own operations and direct business relationships.
b) Offeror certifies the Offeror has not violated or caused any person to violate, and shall not violate or cause any person to violate, the City's Code of Ethics contained in Article 3, of Chapter 1 of the City Code and in the City's Procurement Rules and Regulations
c) When the Offeror has reasonable grounds to believe that a violation described in this clause may have occurred, the Offeror shall promptly report the possible violation to the City Contracts Specialist in writing.
d) The Offeror must disclose with the signing of this proposal, the name of any officer, director, or agent who is also an employee of the City and any City employee who owns, directly or indirectly, an interest of ten percent (10%) or more in the Offeror's firm or any of its branches.
e) In addition, the Offeror must report any conflict or apparent conflict, current or discovered during the performance of the Contract, to the City Contracts Specialist.
f) The Offeror shall not engage in providing gifts, meals or other amenities to City employees. The right of the Offeror to proceed may be terminated by written notice issued by City Contracts Specialist if Offeror offered or gave a gratuity to an officer, official, or employee of the City and intended by the gratuity to obtain a contract or favorable treatment under a contract.
g) The Offeror shall cooperate fully with the City or any agency investigating a possible violation on behalf of the City. If any violation is determined, the Offeror will properly compensate the City.
h) The Offeror agrees to incorporate the substance of this clause (after substituting "Contractor" for "Offeror") in all subcontracts under this offer.

Initial Here #2

3. COOPERATION WITH OTHER CONTRACTORS

Other City activities/contracts may be in progress or start during the performance of this contract. The Offeror shall coordinate the work harmoniously with the other contractors or City personnel, if applicable.

☐
Initial Here #3

4. INTERNET USE

Should the Offeror require access to City Internet resources in the performance of this requirement, a “Contractor’s Internet Use Agreement” form must be separately signed by each individual having access to the City Network. The completed Contractor’s Internet Use Agreement will be maintained with this agreement. Inappropriate use of the City Network will be grounds for immediate termination of any awarded contact.

☐
Initial Here #4

5. LITIGATION

If awarded a contract, Offeror shall notify the City within five (5) calendar days after being served with a summons, complaint, or other pleading in any matter which has been filed in any federal or state court or administrative agency. The Offeror shall deliver copies of such document(s) to the City's Procurement Services Manager. The term "litigation" includes an assignment for the benefit of creditors, and filings of bankruptcy, reorganization and/or foreclosure.

☐
Initial Here #5

6. CONTRACTOR’S REGISTRATION INFORMATION

Offeror’s firm verifies and states that they are (check all that apply):

☐ Large Business (i.e. do not qualify as a small business or non-profit)

☐ Nonprofit

☐ Small Business

☐ Minority Owned Business/Small Disadvantaged Business

☐ Woman Owned Business

☐ Veteran Owned Business

☐ Service-Disabled Veteran Owned Business

☐ HUBZone Business

Note: The City accepts self-certification for these categories in accordance with Small Business Administration (SBA) standards. The SBA size standards are found on the SBA website https://www.sba.gov/content/am-i-small-business-concern.

☐

Initial Here #6

7. CONTRACTOR PERSONNEL

a) The Offeror shall appoint one of its key personnel as the "Authorized Representative" who shall have the power and authority to interface with the City and represent the Offeror in all administrative matters concerning this proposal and any awarded contract, including without limitation such administrative matters as correction of problems modifications, and reduction of costs.

b) The Authorized Representative shall be the person identified in the Offeror's proposal, unless the Offeror provides written notice to the City naming another person to serve as its Authorized Representative. Communications received by the City Contracts Specialist from the Authorized Representative shall be deemed to have been received from the Offeror.

Name: ☐

Telephone: ☐

E-mail: ☐

☐

Initial Here #7

8. OFFEROR'S CERTIFICATION

The undersigned hereby affirms that:

a) He/She is a duly authorized agent of the Offeror;

b) He/She has read and agrees to the City's standard terms and conditions attached.

c) The offer is presented in full compliance with the collusive prohibitions of the City of Colorado Springs. The Offeror certifies that no employee of its firm has discussed, or

compared the offer with any other offeror or City employee and has not colluded with any other offeror or City employee.

d) The Offeror certifies that it has checked all of its figures, and understands that the City will not be responsible for any errors or omissions on the part of the Offeror in preparing its proposal.

e) By submitting an offer the Offeror certifies that it has complied and will comply with all requirements of local, state, and federal laws, and that no legal requirements have been or will be violated in making or accepting this solicitation.

I hereby certify that I am submitting the proposal based on my company's capabilities to provide quality products and/or services on time.

☐

Initial Here #8

9. OFFEROR CERTIFICATION REGARDING DEBARMENT, SUSPENSION, PROPOSED DEBARMENT, AND OTHER RESPONSIBILITY MATTERS:

1. The Offeror certifies to the best of its knowledge and belief, that (i) the Offeror and/or any of its Principals

   ☐ Are ☐ Are Not

   Presently debarred, suspended, proposed for debarment, or declared ineligible for the award of contracts by any Federal agency.

   ☐ Have ☐ Have Not

   Within a three year period preceding this offer, been convicted of or had a civil judgment rendered against them for: commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (federal, state, local) contract or subcontract; violation of Federal or state antitrust statutes relation to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statement, tax evasion, or receiving stolen property; and

   ☐ Are ☐ Are Not

   presently indicated for, or otherwise criminally or civilly charged by a governmental entity with commission of any of the offenses enumerated in any paragraphs above.

2. The Offeror shall provide immediate written notice to the City Contracts Specialist if, at any time prior to contract award, the Offeror learns that its certification was erroneous when submitted or has become erroneous by reasons of changed circumstances.
3. The certification in paragraph 1. above, is a material representation of fact upon which reliance was placed when making award. If it is later determined that the Offeror knowingly rendered an erroneous certification, in addition to other remedies available to the City, the

City Contracts Specialist may terminate the contract resulting from this solicitation for default. Termination for default may result in additional charges being levied for the costs incurred by the City to initiate activities to replace the awarded Contractor.

Initial Here #9

10. ACCEPTANCE OF CITY CONTRACTS SPECIALIST'S SOLE AUTHORITY FOR CHANGES

Unless otherwise specified in the Contract, the Offeror hereby agrees that any changes to the scope of work, subsequent to the original contract signing, shall be generated in writing and an approval signature shall be obtained from the City Contracts Specialist prior to additional work performance.

Initial Here #10

11. CITY CONTRACTOR SAFETY PROGRAM

The Offeror hereby agrees to adhere to a worker safety program for contractor employees on a City job site or location. By initialing below, the Offeror has reviewed the information and will abide by the City Policy which is available for review:

https://coloradosprings.gov/finance/page/procurement-regulations-and-documents

Initial Here #11

12. ACCEPTANCE OF CITY ENVIRONMENTALLY PREFERRED PURCHASING (EPP) POLICY

The City of Colorado Springs is committed to buying more environmentally preferable goods and services, as long as they meet performance needs, are available within a reasonable time and at a reasonable cost. The Offeror hereby acknowledges review of this policy by initialing below.

https://coloradosprings.gov/finance/page/procurement-regulations-and-documents

Initial Here #12

13. FRAUD, WASTE, AND ABUSE

Everyone has a duty to report any suspected unlawful act impacting the City of Colorado Springs operations and its enterprises. Anyone who becomes aware of the existence or apparent existence of fraud, waste, and abuse in City of Colorado Springs is encouraged to report such matters to the City Auditor's Office in writing or on the telephone hotline 385-2387 (ADTR). Written correspondence can be mailed to:

City Auditor

P.O. Box 2241

Colorado Springs CO 80901

Or via email FraudHotline@ColoradoSprings.gov. Any of these mechanisms allow for anonymous reporting. For more information, please go to the website https://coloradosprings.gov/cityfraud.

Initial Here #13

QUALIFICATION STATEMENT

This statement will provide information which will enable the City to evaluate the qualifications of your firm and staff with regard to the requirements of this solicitation. Please complete this form in its entirety. If a request in the Qualification Statement is contained in the proposal, indicate the section in the proposal where that information can be found.

1. **TYPE OF LICENSE(S) HELD**

2. **TYPE OF SERVICE TO BE PROVIDED FOR THIS SOLICITATION**

3. **NUMBER OF YEARS IN BUISNESS**

4. **FIRM HSITORY & STAFF QUALIFICATIONS**

   In your proposal provide a brief history of your firm, staff size, and experience. Submit a resume for the project manager and each key personnel assigned to this project.

5. **WHAT OTHER NAME(S) HAS YOUR COMPANY OPERATED UNDER**

   ☐ My Firm has not operated under any other names

6. **HAVE YOU OR YOUR FIRM EVER FAILED TO COMPELTE ANY WORK AWARDED TO YOU?**

   ☐ Yes ☐ No

   If Yes, Please Explain

7. **HAS ANY OFFICER OF PARTNER OF YOUR ORGANIZATION EVER BEEN AN OFFICER OR PARTNER OF ANOTHER ORGANIZATION THAT FIALED TO COMPLETE A CONTRACT WITHIN THE LAST FIVE (5) YEARS?**

☐ Yes ☐ No

If Yes, Please Explain

8. **HAS YOUR FIRM OR ANY PARTNERS OR OFFICERS EVER BEEN INVOVLED IN ANY BANKRUPTCY ACTION?**

☐ Yes ☐ No

If Yes, Please Explain

9. **ARE YOU PRESENTLY INVOVLED IN ANY LITIGATION WITH ANY GOVERNMENT AGENCY?**

☐ Yes ☐ No

If Yes, Please Explain Type, Kind, Plaintiff, Defendant, etc. and state the current status:

10. **BANK REFERENCE**

Bank Name:	
Address:	
Contact:	
Phone #:	
E-mail:	

11. SIMILAR PROJECTS

List Three similar projects (local or state-wide) from the last five (5) years. Include the location of the project, size of project (contract amount), contract name and information. NOTE: Detailed information on these projects may also be requested in the solicitation package

☐ Indicate here if this information is provided within your proposal and Identify where in the proposal it is located.

1. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

   Representative's Title:

   Representative's Address:

   Representative's Phone #:

   Representative's E-mail:

   Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

2. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

3. Company:

Location of Project:

Contract Amount:

Contract Period of Performance:

Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided and how your firm was successful carrying out the scope of work of the contract.

12. SIMILAR PROJECTS CURRENTLY UNDER CONTRACT

list three projects currently under contract and in progress (local or state-wide) from the last five (5) years. Include the location of the project, size of project (contract amount), contract name and information. NOTE: Detailed information on these projects may also be requested in the solicitation package

☐ Indicate here if this information is provided within your proposal and Identify where in the proposal it is located.

1. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

   Representative's Title:

   Representative's Address:

   Representative's Phone #:

   Representative's E-mail:

   Brief Description of service/goods provided.

2. Company:

   Location of Project:

   Contract Amount:

   Contract Period of Performance:

   Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided.

3. Company:

Location of Project:

Contract Amount:

Contract Period of Performance:

Company Representative:

Representative's Title:

Representative's Address:

Representative's Phone #:

Representative's E-mail:

Brief Description of service/goods provided.

13. ADDITIONAL QUALIFICATION REQUIREMENTS

☐ There are no additional qualification requirements for this solicitation.

☐ There are additional qualification requirements as follows:

EXCEPTIONS

Please Indicate below if there are any exceptions taken to any of the terms, conditions, or specifications of these proposal documents or contract.

If there are exceptions taken to any of the terms, conditions, or specifications of the proposal document or contract, they must be clearly stated on an additional document attached to this exhibit and returned with your proposal.

NOTE: All potential Offerors are hereby advised that exceptions taken may be considered during the evaluation phase which may affect the final scoring of proposals. Offerors stipulating that the City must use their contract or agreement may be determined non-responsive and their Proposal determined unacceptable.

Please indicate below:

☐ My Firm has no exceptions.

☐ My Firm does have exceptions. (Attach Exceptions to this exhibit)

MINIMUM INSURANCE REQUIREMENTS

The following listed minimum insurance requirements shall be carried by all contractors and consultants unless otherwise specified in the City's solicitation package, Special Provisions or Standard Specifications.

1. Commercial General Liability for limits not less than $1,000,000 combined single limit for bodily injury and property damage for each occurrence. Coverage shall include blanket contractual, broad form property damage, products and completed operations.

2. Workers' Compensation and Employers Liability as required by statute. Workers' Compensation and Employers Liability coverage is to be carried for a minimum limit of $1,000,000.

3. Automobile Liability covering any auto (including owned, hired, and non-owned autos) with a minimum of $1,000,000 each accident combined single limit.

Except for workers' compensation and employer's liability insurance and Professional Liability, the City of Colorado Springs must be named as an additional insured. Certificates of Insurance must be submitted before commencing the work and provide 30 days' notice prior to any cancellation, non-renewal, or material changes to policies required under the contract.

Name of Company

Signature

Date

SIGNATURE PAGE

By signing below, the Offeror certifies that no person or firm other than the Offeror or as otherwise indicated has any interest whatsoever in this offer or any Contract that may be entered into as a result of this offer and that in all respects the offer is legal and firm, submitted in good faith without collusion or fraud.

The undersigned additionally declares that it has carefully examined the Bid/Proposal information and the complete Solicitation prior to submitting a Bid / Proposal. The Offeror's signature will be considered the Offeror's acknowledgement of understanding and ability to comply with all items in the solicitation.

The undersigned acknowledges and understands the terms, conditions, Specifications and all Requirements contained and/or referenced and are legally authorized by the Offeror to make the above statements or representations.

Signature

Name (Printed)

Company Name

Title

Date

EXHIBIT 2 SAMPLE CONTRACT

SERVICES CONTRACT

Contract Number:		Project Name/Title	
Vendor/Contractor			
Contact Name:		Telephone:	
Email Address:			
Address:			
City Contracting Specialist		City Dept Rep	
NOT TO EXCEED Contract Amount:		City Account #	
Contract Type:		Period of Performance	

1. INTRODUCTION

THIS *TYPE* CONTRACT ("Contract") is made and entered into this ___ day of_____, 2025 by and between the City of Colorado Springs, a Colorado municipal corporation and home rule city, in the County of El Paso, State of Colorado, (the "City"), and _____ (the "Contractor").

THE CITY AND THE CONTRACTOR HEREBY AGREE AS FOLLOWS:

The City has heretofore prepared the necessary Contract Documents for the following Activity:

The Contractor did on the ___ day of _____, 2025 submit to the City the Contractor's written offer and proposal to do the work therein described under the terms and conditions therein set forth and furnish all materials, supplies, labor, services, transportation, tools, equipment, and parts for said work in strict conformity with the accompanying Contract Documents, which are attached hereto and incorporated herein by this reference, including the following:

1. This Contract Document
2. Appendix A – Additional Terms and Conditions
3. Appendix B – Contractor's Proposal
4. Appendix C – Statement of Work
5. Appendix D – Project Schedule
6. Appendix E – Insurance Requirements

2. COMPENSATION/CONSIDERATION

If FFP/FUP:

THIS FIRM FIXED PRICE/FIXED UNIT PRICE CONTRACT is established at firm fixed amount of $xxxxxxxx.

Subject to the terms and conditions of the Contract Documents, Contractor shall provide all materials, supplies, labor, services, transportation, tools, equipment, and parts to perform XXXX services for the City of Colorado Springs in a good and workmanlike manner to the satisfaction of the City for the total contract amount designated above and in the Notice of Award, to be paid by the City to the Contractor.

If T&M

Subject to the terms and conditions of the Contract Documents, Contractor shall provide all materials, supplies, labor, services, transportation, tools, equipment, and parts to perform _____ services for the City of Colorado Springs in a good and workmanlike manner to the satisfaction of the City for the estimated price of _____ , not to exceed $_____ ("Not to Exceed estimate"). If the performance of this Contract involves the services of others or the furnishing of equipment, supplies, or materials, the Contractor agrees to pay for the same in full. At the time of payment by the City, the Contractor shall certify in writing that said payments have been so made.

This is a Time and Material (T&M) type contract. The Not to Exceed estimate is in accordance with the Contractor's T&M proposal and rates, as included in the attached proposal, dated XXXXXX. All labor charges shall be in accordance with the T&M rates provided therein. Invoiced hours shall be subject to City review and approval before payable.

The parties estimate that performance of this Contract will not exceed the Not to Exceed estimate. The Contractor shall notify the City Contracts Specialist in writing whenever it has reason to believe that the costs the Contractor expects to incur under this Contract in the following 60 days, when added to all costs previously incurred, will exceed 75 percent of the estimated cost specified herein; or the total cost for the performance of this Contract will be either greater or substantially less than had been previously estimated. As part of the notification, the Contractor shall provide the Contracts Specialist a revised estimate of the total cost of performing this Contract.

The City is not liable for any costs above the Not to Exceed estimate, and the Contractor is not obligated to continue performance under this Contract (including actions under the Termination clause of this Contract) or otherwise incur costs in excess of the Not to Exceed estimate specified herein, until the City Contracts Specialist

Notifies the Contractor in writing that the estimated cost has been increased and provides a revised estimated total not to exceed price of performing this Contract.

3. TERM OF CONTRACT

It is further agreed that the Contractor will start work promptly and continue to work diligently until completed. The Contract Period of Performance shall be as follows:

Performance Period	Dates	Price
Base Year:		
Option Year One:		
Option Year Two:		
Option Year Three:		

Option Year Four:

Option years may be exercised unilaterally by the City at the City's sole discretion. Pricing for option years shall be as indicated above. The City may elect not to exercise an option at any time before start of an option at no additional cost to the City. Further, the City shall have the unilateral option of extending services beyond the term of the Contract, including all options, for a period not to exceed a total of six (6) months if additional time is necessary to solicit and award a new Contract. Options to extend services shall be exercised upon written notification (mailed or otherwise furnished) to the Contractor at least fifteen (15) days prior to the expiration date of the Contract, or to extend Contract for up to four additional one year option periods at the City's sole discretion.

The total value of this Contract for all years shall not exceed $XXXXXXX. The value and current funding is $XXXXXXXX for the base year.

OR

Contractor will start work promptly after the Notice to Proceed and continue to work diligently until completed. The Contractor shall complete all work on an as ordered basis throughout the Contract period which is _____ Calendar Days after the Notice-to-Proceed ("Period of Performance") as per the specifications and drawings. The Contractor shall provide a two-year guarantee on all work performed under this Contract after the job has been completed and accepted.

4. INSURANCE

The Contractor shall provide and maintain acceptable Insurance Policy(s) consistent with the Minimum Insurance Requirements attached as Appendix E, which includes Property, Liability and Professional Errors and Omissions coverage, and as otherwise listed in Appendix E. The City of Colorado Springs shall be reflected as an additional insured on the Property and Liability policy(s).

Further, Contractor understands and agrees that Contractor shall have no right of coverage under any existing or future City comprehensive, self, or personal injury policies. Contractor shall provide insurance coverage for and on behalf of Contract that will sufficiently protect Contractor, or Contractor's agents, employees, servants or other personnel, in connection with the services which are to be provided by Contractor pursuant to this Contract, including protection from claims for bodily injury, death, property damage, and lost income. Contractor shall provide worker's compensation insurance coverage for Contractor and all Contractor personnel. Contractor shall file applicable insurance certificates with the City and shall also provide additional insurance as indicated in this Contract. ***A CURRENT CERTIFICATE OF INSURANCE IS REQUIRED PRIOR TO COMMENCEMENT OF SERVICES LISTING THE CITY AS ADDITIONALLY INSURED.***

5. RESPONSIBILITY OF THE CONTRACTOR

A. The Contractor shall be responsible for the professional quality, technical accuracy, and the coordination of all Scope of Work services furnished by the Contractor under this Contract. The Contractor shall, without additional compensation, correct or revise any errors or deficiencies in services provided under this Contract to the satisfaction of the City.

B. The City's review, approval of, acceptance of, or payment for the services required under this Contract shall not be construed to operate as a waiver of any rights under this Contract or of any cause of action arising out of the performance of this Contract, and the Contractor shall

be and remain liable to the City for any and all damages to the City caused by the Contractor's negligent performance of any of the services furnished under this Contract.

C. The rights and remedies of the City provided for under this Contract are in addition to any other rights and remedies provided by law.

D. If the Contractor is comprised of more than one legal entity, each such entity shall be jointly and severally liable hereunder.

6. WORK OVERSIGHT

A. The extent and character of the work to be done by the Contractor shall be subject to the general approval of the City's delegated Project Manager.

B. If any of the work or services being performed does not conform with Contract requirements, the City may require the Contractor to perform the work or services again in conformity with Contract requirements, at no increase in Contract amount. When defects in work or services cannot be corrected by re-performance, the City may (1) require the Contractor to take necessary action to ensure that future performance conforms to Contract requirements and (2) reduce the Contract price to reflect the reduced value of the work or services performed.

C. If the Contractor fails to promptly perform the defective work or services again or to take the necessary action to ensure future performance is in conformity with Contract requirements, the City may (1) by Contract or otherwise, perform the services and charge to the Contractor any cost incurred by the City that is directly related to the performance of such work or service or (2) terminate the Contract for breach of contract.

7. SUBCONTRACTORS, ASSOCIATES, AND OTHER CONTRACTORS

A. Any subcontractor, outside associates, or other contractors used by the Contractor in connection with Contractor's work under this Contract shall be limited to individuals or firms that are specifically identified by the Contractor in the Contractor's proposal and agreed to by the City. The Contractor shall obtain the City's Project Manager's written consent before making any substitution of these subcontractors, associates, or other contractors.

B. The Contractor shall include a flow down clause in all of its subcontracts, agreements with outside associates, and agreements with other contractors. The flow down clause shall cause all of the terms and conditions of this Contract, including all of the applicable parts of the Contract Documents, to be incorporated into all subcontracts, agreements with outside associates, and agreements with other contractors. The flow down clause shall provide clearly that there is no privity of contract between the City and the Contractor's subcontractors, outside associates, and other contractors.

8. KEY PERSONNEL

The key personnel listed in the proposal and/or below will be the individuals used in the performance of the work. If any of the listed key personnel leave employment or are otherwise not utilized in the performance of the work, approval to substitute must be obtained by the Contractor from the City's Project Manager. Any substitute shall have the same or a higher standard of qualifications that the key personnel possessed at the time of Contract award.

9. START AND CONTINUANCE OF WORK

It is further agreed that the Contractor will start work promptly and continue to work diligently until this Contract is completed.

10. APPROPRIATION OF FUNDS

This Contract is expressly made subject to the limitations of the Colorado Constitution and Section 7-60 of the Charter of the City of Colorado Springs. Nothing herein shall constitute, nor be deemed to constitute, the creation of a debt or multi-year fiscal obligation or an obligation of future appropriations by the City Council of Colorado Springs, contrary to Article X, § 20, Colo. Const., or any other constitutional, statutory, or charter debt limitation. Notwithstanding any other provision of this Contract, with respect to any financial obligation of the City which may arise under this Agreement in any fiscal year after the year of execution, in the event the budget or other means of appropriation for any such year fails to provide funds in sufficient amounts to discharge such obligation, such failure (i) shall act to terminate this Contract at such time as the then-existing and available appropriations are depleted, and (ii) neither such failure nor termination shall constitute a default or breach of this Contract, including any sub-agreement, attachment, schedule, or exhibit thereto, by the City. As used herein, the term “appropriation” shall mean and include the due adoption of an appropriation ordinance and budget and the approval of a Budget Detail Report (Resource Allocations) which contains an allocation of sufficient funds for the performance of fiscal obligations arising under this Contract.

11. CHANGES

The Contractor and the City agree and acknowledge as a part of this Contract that no change order or other form or order or directive may be issued by the City which requires additional compensable work to be performed, which work causes the aggregate amount payable under the Contract to exceed the amount appropriated for this Contract as listed above, unless the Contractor has been given a written assurance by the City that lawful appropriations to cover the costs of the additional work have been made or unless such work is covered under a remedy-granting provision of this Contract. The Contractor and the City further agree and acknowledge as a part of this Contract that no change order or other form or order or directive which requires additional compensable work to be performed under this Contract shall be issued by the City unless funds are available to pay such additional costs, and, regardless of any remedy-granting provision included within this Contract, the Contractor shall not be entitled to any additional compensation for any change which increases or decreases the Contract completion date, or for any additional compensable work performed under this Contract, and expressly waives any rights to additional compensation, whether by law or equity, unless, prior to commencing the additional work, the Contractor is given a written change order describing the change in Contract completion date or the additional compensable work to be performed, and setting forth the amount of compensation to be paid, and such change order is signed by the authorized City representative, as defined below. The amount of compensation to be paid, if any, shall be deemed to cover any and all additional, direct, indirect or other cost or expense or profit of the Contractor whatsoever. It is the Contractor's sole responsibility to know, determine, and ascertain the authority of the City representative signing any change order under this Contract.

No change, amendment, or modification to this Contract shall be valid unless duly approved and issued in writing by the City of Colorado Springs Procurement Services Division. The City shall not be liable for any costs incurred by the Contractor resulting from work performed for changes not issued in writing by the City of Colorado Springs Procurement Services Division.

The following personnel are authorized to sign changes, amendments, or modifications to this Contract.

The Department Manager: up to $149,999.99
The City of Colorado Springs Deputy Chief of Staff: $150,000.00 to $499,999.99
The City of Colorado Springs Chief of Staff: $500,000.00 to $1,999,999.99
The Mayor of Colorado Springs: Unlimited

12. ASSIGNMENT

No assignment or transfer by the Contractor of this Contract or any part thereof or of the funds to be received thereunder by the Contractor will be recognized unless such assignment has had the prior written approval of the City and the surety has been given due notice of such assignment. Such written approval by the City shall not relieve the Contractor of the obligations under the terms of this Contract. In addition to the usual recitals in assignment contracts, the following language must be included in the assignment:

It is agreed that the funds to be paid to the assignee under this assignment are subject to a prior lien for services rendered or materials supplied for the performance of the work called for in said contract in favor of all persons, firms, or corporations rendering such services or supplying such materials.

13. CHOICE OF LAW

This Contract is subject to and shall be interpreted under the law of the State of Colorado, and the Charter, City Code, Ordinances, Rules and Regulations of the City of Colorado Springs, Colorado, a Colorado home rule city. Court venue and jurisdiction shall be exclusively in the Colorado District Court for El Paso County, Colorado. The Parties agree that the place of performance for this Contract is deemed to be in the City of Colorado Springs, El Paso County, State of Colorado. The Contractor shall ensure that the Contractor and the Contractor's employees, agents, officers and subcontractors are familiar with, and comply with, applicable Federal, State, and Local laws and regulations as now written or hereafter amended.

14. WORKERS' COMPENSATION INSURANCE

Contractor shall take out and maintain during the Period of Performance, Colorado Worker's Compensation Insurance for the Contractor and all employees of the Contractor. If any service is sublet by the Contractor, the Contractor shall require the subcontractor to provide the same coverage for the subcontractor and subcontractor's employees. Workers' Compensation Insurance shall include occupational disease provisions covering any obligations of the Contractor in accord with the provisions of the Workers' Compensation Act of Colorado.

15. INDEMNIFICATION

Contractor agrees that the Contractor shall indemnify, defend and hold harmless the City, its officers, employees and agents, from and against any and all loss, damage, injuries, claims, cause or causes of action, or any liability whatsoever resulting from, or arising out of, or in connection with the Contractor's obligations or actions under this Contract caused by any willful or negligent error, omission or act or a failure to observe any applicable standard of care by the Contractor or any person employed by it or anyone for whose acts the Contractor is legally liable.

In consideration of the award of this Contract, to the extent damages are covered by insurance, the Contractor agrees to waive all rights of subrogation against the City, its subsidiary, parent, associated and/or affiliated entities, successors, or assigns, its elected officials, trustees, employees, agents, and volunteers for losses arising from the work performed by the Contractor for the City. The indemnification obligation shall survive the expiration or termination of this Contract

16. INDEPENDENT CONTRACTOR

In the performance of the Contractor's obligations under this Contract, it is understood, acknowledged and agreed between the parties that the Contractor is at all times acting and performing as an independent contractor, and the City shall neither have nor exercise any control or direction over the manner and means by which the Contractor performs the Contractor's obligations under this Contract, except as otherwise stated within the Contract terms. The City shall not provide any direction to the Contractor on the work necessary to complete the project. Contractor understands that it is an independent contractor responsible for knowing how to perform all work or tasks necessary to complete project. The Contractor understands and agrees that the Contractor and the Contractor's employees, agents, servants, or other personnel are not City employees. The Contractor shall be solely responsible for payment of salaries, wages, payroll taxes, unemployment benefits or any other form of compensation or benefit to the Contractor or any of the Contractor's employees, agents, servants or other personnel performing services or work under this Contract, whether it is of a direct or indirect nature. Further in that regard, it is expressly understood and agreed that for such purposes neither the Contractor nor the Contractor's employees, agents, servants or other personnel shall be entitled to any City payroll, insurance, unemployment, worker's compensation, retirement or any other benefits whatsoever.

17. APPLICABLE LAW AND LICENSES

In the conduct of the services or work contemplated in this Contract, the Contractor shall ensure that the Contractor and all subcontractors comply with all applicable state, federal and City and local law, rules and regulations, technical standards or specifications. The Contractor shall qualify for and obtain any required licenses prior to commencement of work.

18. PRIOR AGREEMENTS

This is a completely integrated Contract and contains the entire agreement between the parties. Any prior written or oral agreements or representations regarding this Contract shall be of no effect and shall not be binding on the City. This Contract may only be amended in writing, and executed by duly authorized representatives of the parties hereto.

19. INTELLECTUAL PROPERTY

The Parties hereby agree, and acknowledge, that all products, items writings, designs, models, examples, or other work product of the Contractor produced pursuant to this Contract are works made for hire, and that the City owns, has, and possesses any and all ownership rights and interests to any work products of the Contractor made under this Contract, including any and all copyright, trademark, or patent rights, and that compensation to the Contractor for Agreement and acknowledgment of this intellectual property right section of this Contract is included in any compensation or price whatsoever paid to the Contractor under this Contract. It is the intent of the parties that the City shall have full ownership and control of the Contractor's work products produced pursuant to this Contract, and the Contractor specifically waives and assigns to the City

all rights which Contractor may have under the 1990 Visual Artists Rights Act, federal, and state law, as now written or later amended or provided. In the event any products, items writings, designs, models, examples, or other work product produced pursuant to this Contract is deemed by a court of competent jurisdiction not to be a work for hire under federal copyright laws, this intellectual property rights provision shall act as an irrevocable assignment to the City by the Contractor of any and all copyrights, trademark rights, or patent rights in the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, including all rights in perpetuity. Under this irrevocable assignment, the Contractor hereby assigns to the City the sole and exclusive right, title, and interest in and to the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, without further consideration, and agrees to assist the City in registering and from time to time enforcing all copyrights and other rights and protections relating to the Contractor's products, items writings, designs, models, examples, or other work product in any and all countries. It is the Contractor's specific intent to assign all right, title, and interest whatsoever in any and all copyright rights in the Contractor's products, items writings, designs, models, examples, or other work product produced pursuant to this Contract, in any media and for any purpose, including all rights of renewal and extension, to the City. To that end, the Contractor agrees to execute and deliver all necessary documents requested by the City in connection therewith and appoints the City as Contractor's agent and attorney-in-fact to act for and in Contractor's behalf and stead to execute, register, and file any such applications, and to do all other lawfully permitted acts to further the registration, prosecution, issuance, renewals, and extensions of copyrights or other protections with the same legal force and effect as if executed by the Contractor; further, the parties expressly agree that the provisions of this intellectual property rights section shall be binding upon the parties and their heirs, legal representatives, successors, and assigns.

20. WAIVERS

No waiver of default by the City of any of the terms, covenants, and conditions hereof to be performed, kept, and observed by the Contractor shall be construed, or shall operate, as a waiver of any subsequent default of any of the terms, covenants, or conditions herein contained to be performed, kept, and observed by the Contractor.

21. THIRD PARTIES

It is expressly understood and agreed that enforcement of the terms and conditions of this Contract, and all rights of action relating to such enforcement, shall be strictly reserved to the Parties hereto, and nothing contained in this Contract shall give or allow any such claim or right of action by any other or third person or entity on such Contract. It is the express intention of the Parties hereto that any person or entity, other than the Parties to this Contract, receiving services or benefits under this Contract shall be deemed to be incidental beneficiaries only.

22. TERMINATION

A. Termination for Convenience.
   By signing this Contract, Contractor represents that it is a sophisticated business and enters into the Contract voluntarily, has calculated all business risks associated with this Contract, and understands and assumes all risks of being terminated for convenience, whether such risks are known or not known. Contractor agrees that the City may terminate this Contract at any time for convenience of the City, upon written notice to the Contractor. Contractor expressly agrees to and assumes the risk that the City shall not be liable for any costs or fees

of whatsoever kind and nature if termination for convenience occurs before Contractor begins any work or portion of the work. Contractor further expressly agrees and assumes the risks that the City shall not be liable for any unperformed work, anticipated profits, overhead, mobilizations costs, set-up, demobilization costs, relocation costs of employees, layoffs or severance costs, administrative costs, productivity costs, losses on disposal of equipment or materials, cost associated with the termination of subcontractors, costs associated with purchase orders or purchases, or any other costs or fees of any kind and nature, if Contractor has started or performed portions of the Contract prior to receiving notice from the City. The City shall be liable only for the portions of work Contractor actually satisfactorily completed up to the point of the issuance of the Notice of Termination for convenience. Upon receipt of this notice the Contractor shall immediately: discontinue all services affected (unless the notice directs otherwise), and deliver to the City all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Contract, whether completed or in process.

B. Termination for Cause: The occurrence of any one or more of the following events ("Event of Default") will justify termination for cause:
   i. Contractor's failure to perform the work in accordance with the Contract Documents (including, but not limited to, failure to supply sufficient skilled workers or suitable materials or equipment or failure to adhere to the progress schedule as adjusted from time to time.
   ii. Contractor's disregard of the laws or regulations of any public body having jurisdiction.
   iii. Contractor's disregard of the authority of Project Manager.
   iv. Contractor's violation in any material provision of the Contract Documents.
   v. Contractor's failure to make prompt payments to its subcontractors, and suppliers of any tier, or laborers or any person working on the work by, through, or under the Contractor or any of them, any all of their employees, officers, servants, members, and agents.
   vi. Contractor files a petition commencing a voluntary case under the U.S. Bankruptcy Code, or for liquidation, reorganization, or an arrangement pursuant to any other U.S. or state bankruptcy Laws, or shall be adjudicated a debtor or be declared bankrupt or insolvent under the U.S. Bankruptcy Code, or any other federal or state laws relating to bankruptcy, insolvency, winding-up, or adjustment of debts, or makes a general assignment for the benefit of creditors, or admits in writing its inability to pay its debts generally as they become due, or if a petition commencing an involuntary case under the U.S. Bankruptcy Code or an answer proposing the adjudication of Contractor as a debtor or bankrupt or proposing its liquidation or reorganization pursuant to the Bankruptcy Code or any other U.S. federal or state bankruptcy laws is filed in any court and Contractor consents to or acquiesces in the filing of that pleading or the petition or answer is not discharged or denied within sixty (60) Calendar Days after it is filed.
   vii. A custodian, receiver, trustee or liquidator of Contractor, all or substantially all of the assets or business of Contractor, or of Contractor's interest in the Work or the Contract, is appointed in any proceeding brought against Contractor and not discharged within sixty (60) Calendar Days after that appointment, or if Contractor shall consent to or acquiesces in that appointment.
   viii. Contractor fails to commence correction of defective work or fails to correct defective work within a reasonable period of time after written notice.

If one or more of the events identified in Paragraphs i-viii above occur, City may give Contractor written notice of the event and direct the event be cured. Any such Notice to Cure will provide Contractor a minimum of ten (10) calendar days to prepare and submit to the Project Manager a plan to correct the Event of Default. If such plan to correct the Event of Default is not submitted to the Project Manager within ten (10) days after the date of the written notice or such plan is

unacceptable to the City, the City may, give Contractor (and the Surety, if any) written notice that Contractor's services are being terminated for cause. Upon delivery of the termination notice, City may terminate the services of Contractor in whole or in part, exclude Contractor from the site, and take possession of the work and of all Contractor's tools, appliances, equipment, and machinery at the project site, and use the same to the full extent they could be used by Contractor (without liability to Contractor for trespass or conversion), incorporate in the work all materials and equipment stored at the site or for which City has paid Contractor but which are stored elsewhere, and finish the work as City may deem expedient. In such case, Contractor shall not be entitled to receive any further payment until Certificate of Completion of the work. In the event City terminates this Contract for Cause and the cost of completing the work exceeds the unpaid balance of the Contract price, Contractor shall pay City for any costs of completion which exceed the Contract price when combined with all amounts previously paid to Contractor. When exercising any rights or remedies under this paragraph City shall not be required to obtain the lowest price for the work performed. Should the cost of such completion, including all proper charges, be less than the original Contract price, the amount so saved shall accrue to the City. Neither the City nor any officer, agent or employee of the City shall be in any way liable or accountable to the Contractor or the Surety for the method by which the completion of the said work, or any portion thereof, may be accomplished or for the price paid.

Where Contractor's services have been so terminated by City, the termination will not affect any rights or remedies of City against Contractor or Surety then existing or which may thereafter accrue. Any retention or payment of moneys due Contractor by City will not release Contractor from liability.

C. Termination Notice. Upon receipt of a termination notice, whether for convenience or cause, the Contractor shall immediately: discontinue all services affected (unless the notice directs otherwise), and deliver to the City all data, drawings, specifications, reports, estimates, summaries, and other information and materials accumulated in performing this Contract, whether completed or in process.

D. Removal of Equipment. Except as provided above, in the case of termination of this Contract before completion from any cause whatever, the Contractor, if notified to do so by the City, shall promptly remove any part or all of Contractor's equipment and supplies from the property of the City, failing which the City shall have the right to remove such equipment and supplies at the expense of the Contractor.

23. BOOKS OF ACCOUNT AND AUDITING

The Contractor shall make available to the City if requested, true and complete records, which support billing statements, reports, performance indices, and all other related documentation. The City's authorized representatives shall have access during reasonable hours to all records, which are deemed appropriate to auditing billing statements, reports, performance indices, and all other related documentation. The Contractor agrees that it will keep and preserve for at least seven years all documents related to the Contract which are routinely prepared, collected or compiled by the Contractor during the performance of this Contract.

The City's Auditor and the Auditor's authorized representatives shall have the right at any time to audit all of the related documentation. The Contractor shall make all documentation available for examination at the Auditor's request at either the Auditor's or Contractor's offices, and without expense to the City.

24. COMPLIANCE WITH IMMIGRATION REFORM AND CONTROL ACT OF 1986

Contractor certifies that Contractor has complied with the United States Immigration Reform and Control Act of 1986. All persons employed by Contractor for performance of this Contract have completed and signed Form I-9 verifying their identities and authorization for employment.

25. LABOR

The Contractor shall employ only competent and skilled workmen and foremen in the conduct of work on this Contract. The Contractor shall at all times enforce strict discipline and good order among Contractor's employees. The Project Manager shall have the authority to order the removal from the work of any person, including Contractor's or any subcontractor's employees, who refuses or neglects to observe any of the provisions of these Plans or Specifications, or who is incompetent, abusive, threatening, or disorderly in conduct and any such person shall not again be employed on the Project.

In no event shall the City be responsible for overtime pay.

26. GRATUITIES

A. This Contract may be terminated if the Mayor, the Mayor's designee, and/or the Procurement Services Manager determine, in their sole discretion, that the Contractor or any officer, employee, agent, or other representative whatsoever, of the Contractor offered or gave a gift or hospitality to a City officer, employee, agent or Contractor for the purpose of influencing any decision to grant a City contract or to obtain favorable treatment under any City contract.

B. The terms "hospitality" and "gift" include, but are not limited to, any payment, subscription, advance, forbearance, acceptance, rendering or deposit of money, services, or anything of value given or offered, including but not limited to food, lodging, transportation, recreation or entertainment, token or award.

C. Contract termination under this provision shall constitute a breach of contract by the Contractor, and the Contractor shall be liable to the City for all costs of reletting the contract or completion of the project. Further, if the Contractor is terminated under this provision, or violates this provision but is not terminated, the Contractor shall be subject to debarment under the City's Procurement Regulations. The rights and remedies of the City provided in this clause shall not be exclusive and are in addition to any other rights and remedies provided by law or under this Contract.

27. NON-DISCRIMINATION

A. In accord with section 24-34-402, C.R.S., Title VII of the Civil Rights Act of 1964, Americans with Disabilities Act of 1990 as amended, all applicable federal and state laws, the Contractor will not discriminate against any employee or applicant for employment because of disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, religion, age, national origin, or ancestry.

B. The Contractor agrees to post in conspicuous places, available to employees and applicants for employment, notices to be provided setting forth the provisions of this nondiscrimination clause.

C. The Contractor will, in all solicitations or advertisements for employees placed by or on behalf of the Contractor, state that all qualified applicants will receive consideration for employment without regard to disability, race, creed, color, sex, sexual orientation, gender identity, gender expression, religion, age, national origin, or ancestry.

28. TECHNOLOGY ACCESSIBILITY

Contractor hereby certifies and guarantees that the products and services, including but not limited to any software-as-a-service or online platform, being purchased by City are compliant with: (i) the accessibility standards established by the chief information officer of the State of Colorado in accord with Section 24-85-103, C.R.S., as may be amended, including Web Content Accessibility Guidelines ("WCAG") 2.1 "Level A" and "Level AA," or other applicable accessibility standards required by the State of Colorado pertaining to those with disabilities, and (ii) any federally adopted law or regulation pertaining to technology accessibility for those with disabilities, including but not limited to the final rule published by the Department of Justice in the Federal Register on April 24, 2024, updating regulations for Title II of the Americans with Disabilities Act (ADA), "Nondiscrimination on the Basis of Disability; Accessibility of Web Information and Services of State and Local Government Entities," 28 CFR Part 35, [CRT Docket No. 144; AG Order No. 5919-2024], RIN 1190-AA79, as such laws may be amended (together the "Accessibility Laws"). Contractor shall provide the City with a completed Voluntary Product Accessibility Template ("VPAT"), WCAG Edition, attached hereto as Exhibit __ and incorporated herein, that demonstrates compliance with applicable WCAG standards and the Accessibility Laws. Contractor shall immediately, or within the timeframe designated by City, resolve and remediate all accessibility issues discovered in Contractor's products and services. All of Contractor's ongoing maintenance, updates, upgrades, fixes, and other changes to the products or services shall conform to these requirements and comply with the Accessibility Laws. During all periods where Contractor's products and services do not conform to the Accessibility Laws or otherwise have accessibility issues, Contractor shall provide all reasonable accommodations for users of the products and services as directed by the City and at no additional charge.

Failure to comply with the Accessibility Laws and accessibility standards or to provide the necessary documentation may result in the City, in its sole discretion, terminating the Agreement, Statement of Work, Order Form, or other agreement for material breach, without Contractor recourse. In the event of such termination by City, Contractor shall refund all amounts paid to Contractor under the Agreement or other terminated document. Contractor shall indemnify, defend, and hold harmless City and its representatives for any failure, or allegation of failure, of the products or services to conform with the applicable accessibility standards and Accessibility Laws, including but not limited to any civil claim or suit filed by a person with a disability pursuant to Section 24-34-802, C.R.S., as may be amended.

29. ORDER OF PRECEDENCE

Any inconsistency in this Contract shall be resolved by giving precedence in the following order:

A. This Contract document with its terms and conditions
B. The Statement of Work
C. Other Appendices, Attachments, Exhibits, or Schedules

30. HEADINGS

The section headings contained in this Contract are for reference purposes only and shall not affect the meaning or interpretation of this Contract.

31. DISPUTES

A. All administrative and contractual disputes arising from or related to this Contract shall be addressed in the following manner:
   i. If either Party disputes or disagrees with a Contract term or the other Party's interpretation of a Contract term or has any other administrative or contractual dispute not addressed in the Unanticipated Circumstances provisions, such Party shall promptly give the other Party written notice of said dispute.
   ii. The Parties shall hold a meeting as soon as reasonably possible, but in no event later than thirty (30) calendar days from the initial written notice of the dispute, attended by persons with decision-making authority regarding the dispute, to attempt in good faith to negotiate a resolution of the dispute; provided, however, that no such meeting shall be deemed to vitiate or reduce the obligations and liabilities of the Parties or be deemed a waiver by a Party of any remedies to which such Party would otherwise be entitled unless otherwise agreed to by the Parties in writing.
   iii. If, within thirty (30) calendar days after such meeting, the Parties have not succeeded in negotiating a resolution of the dispute, they agree to submit the dispute to non-binding mediation and to bear equally the costs of the mediation.
   iv. The Parties will jointly appoint a mutually acceptable mediator. If they fail to do so within twenty (20) calendar days from the conclusion of the negotiation period, they shall each select a mediator. The two mediators will then appoint a third mediator who shall conduct mediation for the Parties as the sole mediator.
   v. The Parties agree to participate in good faith in the mediation and negotiations for a period of thirty (30) calendar days. The substantive and procedural law of the State of Colorado shall apply to the proceedings. If the Parties are not successful in resolving the dispute through mediation, then the Parties shall be free to pursue any other remedy afforded by the laws of the State of Colorado.
   vi. Until final resolution of any dispute hereunder, the Contractor shall diligently proceed with the performance of this Contract as directed by the City. For purposes of this Contract, termination for convenience shall not be deemed a dispute. The City of Colorado Springs and the Contractor agree to notify each other in a timely manner of any claim, dispute, or cause of action arising from or related to this Contract, and to negotiate in good faith to resolve any such claim, dispute, or cause of action. To the extent that such negotiations fail, the City of Colorado Springs and the Contractor agree that any lawsuit or cause of action that arises from or is related to this Contract shall be filed with and litigated only by the Colorado District Court for El Paso County, CO.

32. DELIVERY

The City may cancel this Contract or any portion thereof if delivery is not made when and as specified, time being of the essence in this Contract. Contractor shall pay the City for any loss or damage sustained by the City because of failure to perform in accordance with this Contract.

33. PAYMENTS

All invoices shall be sent to the Project Manager identified in this Contract.

The City will pay the Contractor, upon submission of proper invoices, the prices stipulated in the Contract for services rendered and accepted, less any deductions provided in this Contract within 30 days (Net 30). The City will not pay late fees or interest. Any discount payment terms offered on the invoice may be taken by the City.

Each invoice must contain at least the following information:

Contract number, issued purchase order number, invoice number, invoice date, timeframe covered by invoice, type and amount of labor and materials used for that time period, dollar amount in unit price, extended price, and total value of invoice.

If T&M

The City will make payments for services on a monthly basis for services performed during the previous month in accordance with this Contract. All labor Invoices shall include labor categories, rates, hours worked, and total amounts per category. All labor categories and rates charged must be included in this Contract. No other categories or rates will be allowed or payable. All labor invoices are subject to City approval.

Materials will be payable on a reimbursable basis with no additional profit, fee, overhead, handling, or General and Administrative (G&A) costs. All costs for materials shall be approved by the City Contracts Specialist before the costs are incurred and payable.

The City will pay the Contractor, upon submission of proper invoices, the prices stipulated in the Contract for services rendered and accepted, less any deductions provided in this Contract within 30 days (Net 30). The City will not pay late fees or interest. Any discount payment terms offered on the invoice may be taken by the City.

34. INSPECTION OF SERVICES

The Contractor is responsible for performing or having performed all inspections and tests necessary to substantiate that the services furnished under this Contract conform to Contract requirements, including any applicable technical requirements for specified manufacturers' parts. This clause takes precedence over any City inspection and testing required in the Contract's specifications, except for specialized inspections or tests specified to be performed solely by the City.

A. Definition of "services", as used in this clause, includes services performed, workmanship, and material furnished or utilized in the performance of services.

B. The Contractor shall provide and maintain an inspection system acceptable to the City covering the services under this Contract. Complete records of all inspection work performed by the Contractor shall be maintained and made available to the City during Contract performance and for as long afterwards as the Contract requires.

C. The City has the right to inspect and test all services called for by the Contract, to the extent practicable at all times and places during the term of the Contract. The City will perform inspections and tests in a manner that will not unduly delay the work.

D. If the City performs inspections or test on the premises of the Contractor or a subcontractor, the Contractor shall furnish, and shall require subcontractors to furnish, at no increase in

Contract price, all reasonable facilities and assistance for the safe and convenient performance of these duties.

35. SECURITY

The City maintains security requirements regarding access to City buildings and other City workplaces and worksites on City property. All Contractor personnel accessing City buildings, workplaces, or worksites, may be required to produce a valid, Government issued picture identification. Contractor personnel lacking such identification may not be allowed access to such sites. No costs incurred by the Contractor due to City security requirements shall be allowable or payable under this Contract.

36. TIME IS OF THE ESSENCE

In as much as the Contract concerns a needed or required service, the terms, conditions, and provisions of the Contract relating to the time of performance and completion of work are of the essence of this Contract. The Contractor shall begin work on the day specified and shall prosecute the work diligently so as to assure completion of the work within the number of calendar days or date specified, or the date to which the time for completion may have been extended.

37. EMPLOYMENT OF LABOR

The Contractor shall comply with and defend and hold the City harmless from any violation of all laws and lawful rules and regulations, both of the State of Colorado and of the United States, relating to Workmen's Compensation, unemployment compensation, Social Security, payment for overtime, and all other expenses and conditions of employment under this Contract.

38. SALES TAX

The Contractor must have a tax-exemption certificate from the Colorado Department of Revenue for this project. The certificate does not apply to City of Colorado Springs Sales and Use Tax which shall be applicable. The tax-exempt project number and the exemption certificate only applies to County, PPRTA (Pikes Peak Rural Transportation Authority), and State taxes when purchasing construction and building materials **to be incorporated into this project**.

Furthermore, the exemption **does not** include or apply to the purchase or rental of equipment, supplies or materials that **do not become a part of the completed project or structure**. Such purchases and rentals are subject to full applicable taxation.

All contracts with subcontractors must include the City of Colorado Springs Sales and Use Tax on the work covered by the Contract, and other taxes as applicable.

Note: For all equipment, materials and supplies incorporated into the work purchased from vendors or suppliers not licensed to collect City Sales Tax (i.e. out of state suppliers, etc.), City Use Tax is due and payable to the City. The Contractor shall execute and deliver and shall cause the Contractor’s subcontractors to execute and deliver to the City Sales Tax Office, the appropriate ST forms as designated by the City Sales Tax Office. These forms shall list all said equipment, materials and supplies and the corresponding use tax due, along with payment for said taxes. Any outstanding taxes due may be withheld from the final payment due the Contractor and may result in suspension of Contractor from bidding on City projects.

Forms and instructions can be downloaded at https://coloradosprings.gov/sales-tax. Questions can be directed to the City Sales Tax Division at (719) 385-5903 or SalesTax@coloradosprings.gov.
Our Registration Numbers are as follows:
City of Colorado Springs
Federal I.D.: 84-6000573
Federal Excise: A-138557
State Sales Tax: 98-03479

The Contractor's payment or exemption of State of Colorado, El Paso County and City Sales and Use Taxes shall be as specified herein.

39. SEVERABILITY

If any terms, conditions, or provisions of this Contract shall be held unconstitutional, illegal, or void, such finding shall not affect any other terms, conditions, or provisions of this Contract.

40. LIABILITY OF CITY EMPLOYEES

All authorized representatives of the City are acting solely as agents and representatives of the City when carrying out and exercising the power or authority granted to them under the Contract. There shall not be any liability on them either personally or as employees of the City.

41. USE OF CITY NAME OR LOGO

Except as otherwise provided in this Contract, the Contractor shall not refer to this Contract or the City of Colorado Springs in any advertising or promotions in such a manner as to state or imply that the product or service provided is endorsed or preferred by the City of Colorado Springs, its employees, or its Departments, or is considered by these entities to be superior to other products or services. Any use of the name or logo of the City of Colorado Springs in advertising or promotions must be approved in writing by the City of Colorado Springs Contracts Specialist assigned to the Contract prior to such use.

42. TRAVEL

If travel expenses are included as a line item in this Contract, all travel expenses incurred and billable by the Contractor are subject to City approval. Air travel shall be limited to the round trip "economy coach" fare. Travel from the Colorado Springs Airport is encouraged. Unless there are extenuating circumstances, the Contract should take advantage of lower airfares by purchasing tickets more than 14 days in advance of travel. In-state travel by air must be more economical than travel by private vehicle. Use of a private vehicle may be reimbursed per mile at the current rate published by the IRS annually. Short-term parking, long-term parking or cab fare associated with airport departure and arrival may be allowable expenses. Valet parking will not be allowed unless it is the least expensive or only option. Car rental rates may be reimbursed for car rentals no greater than the intermediate or standard classification. The City will not reimburse any other travel methods or expenses. The City will pay for lodging, meals, and miscellaneous expenses on a per diem basis only, in accordance with the current per diem rates published by the IRS annually. The City will not pay for Contractor expenses exceeding the per diem rates. Receipts for all reimbursable expenses must be provided with the Contractor’s invoice.

43. ELECTRONIC SIGNATURES

This Agreement and all other documents contemplated hereunder may be executed using electronic signatures with delivery via facsimile transmission, by scanning and transmission of electronic files in Portable Document Format (PDF) or other readily available file format, or by copy transmitted via email, or by other electronic means and in one or more counterparts, each of which shall be (i) an original, and all of which taken together shall constitute one and the same agreement, (ii) a valid and binding agreement and fully admissible under state and federal rules of evidence and (iii) enforceable in accordance with its terms.

44. APPENDICES

The following Appendices are made a part of this Agreement:

1. Appendix A – Additional Terms and Conditions
2. Appendix B – Contractor's Proposal,
3. Appendix C – Statement of Work.
4. Appendix D – Project Schedule
5. Appendix E – Insurance Requirements

CONTRACT SIGNATURE PAGE

IN WITNESS WHEREOF, the parties have caused these presents to be executed on the day and the year first above written.

This Contract is executed in one (1) original copy.

THE CITY OF COLORADO SPRINGS, COLORADO:

SECOND PARTY: SAMPLE CONTRACT ONLY	
Corporate Name	
Signature	Date
Title	

EXHIBIT 3 SAMPLE EVALUATION SCORESHEET

Proposer's Name: _____

Evaluator's Name: _____

Project Name/RFP#: _____

RFP EVALUATION CRITERIA DESCRIPTION	SCORE
1. TECHNICAL AREA The Offeror must explain its overall solution, considering the scope of work or statement of work provided. The content must include, but not necessarily be limited to, the following information.	
A. UNDERSTANDING OF AND COMPLIANCE WITH TECHNICAL REQUIREMENTS	
In the Technical Area, the Offeror should address each work area in sufficient detail to demonstrate a clear and full understanding of the work. The proposal should not merely parrot the requirements of the RFP. Further, the Offeror should provide evidence of sufficient planning to ensure the work is completed on schedule and within budget. Consider the following questions. 1. Does the proposal demonstrate a firm understanding of the requirements and goals of the Statement of Work, as well as industry standards and reasonable expectations for a company in the industry? 2. Does the proposal fully and completely address each requirement and goal of the Statement of Work? 3. Does the proposal provide solutions to indicate that requirements and goals will be met on schedule? 4. Does the technical solution seem realistic? 5. Does it generally appear that the Offeror knows and thoroughly understands the business and requirement? **COMMENTS:**	
B. PROJECT APPROACH	
In the Technical Area, the Offeror should clearly present proposed solutions and indicate that it has performed adequate planning to accomplish tasks as defined in the Statement of Work. Innovations, efficiencies, and detailed specifics are all encouraged. The Offeror must at least address the following areas: 1. Schedule Management. Offeror must approach to schedule management including updating and reporting progress of the work.	

2. Quality Control. Offeror must discuss quality control plan, processes and approach to ensure that the City receives a quality product. 3. Safety. Offeror must discuss approach and commitment to safety for its workers, the public, and City employees, if services are accomplished on a City site. 4. Offeror must discuss potential issues it foresees with this project and how Offeror would make adjustments if encountered. Consider the following questions. 1. Does the proposal include a complete plan to accomplish each requirement, including subcontracting (if applicable)? 2. Does the proposal demonstrate that appropriate and qualified personnel and equipment will be provided to carry out the requirement? 3. Is the proper level of effort directed toward each requirement? Does the level of effort look unrealistically low or unreasonably high? **COMMENTS**	
Sum of Ratings in Management Area (Add numbers in Sections 1.A. and 1.B.)	
2. MANAGEMENT AREA The Offeror must explain its method of managing the work to be performed. The content must include, but no necessarily be limited to, the following information.	
A. PROJECT MANAGEMENT CONTROLS	
In In the Management Area, the Offeror should provide a plan of operation, to include management of personnel, workload, schedule, and budget. It should also include an organization chart which demonstrates clear and effective lines of authority, responsibility, and communication for management, supervisory, and technical personnel. The plan should address which job classification or personnel will be assigned to each task and how that determination is made. Basic human resource management concepts should be addressed, including hiring, firing, discipline, incentive plans, etc. If the Offeror plans to subcontract more than 10% of the work, include information on how the Offeror plans to manage its subcontractors. The Offeror shall provide a detailed schedule for the project showing the key activities and how they will meet or better the County's timeframe and maximize efficiency to provide the best value to the City and minimize impacts to the public. The schedule shall be based on the Offeror's understanding and approach to the work as addressed above. Consider the following questions. 1. Does the proposal address the issues above in sufficient detail to demonstrate a sophisticated and mature management control system? 2. Are program management controls consistent with the technical portion of the proposal, especially regarding schedule and level of effort? 3. Does the plan and controls indicate that the Offeror will obtain, keep, and efficiently utilize high quality personnel? 4. Does the offer address corrective actions?	

5. Does the proposal explain how the Offeror will remain within schedule and budget and provide a project timeline and implementation plan? 6. Does the proposal show that the Offeror has ability for alarm detection and City notification as shown in SOW? 7. Does the proposal show that the Offeror has the proper customer service and response as shown in SOW? **COMMENTS:**	
B. PAST PERFORMANCE/RELEVANT EXPERIENCE	
In the Management Area, the Offeror should provide at least three references or contracts demonstrating that it successfully provided services/products same or similar to those required in the RFP. The proposal should adequately explain how the projects were completed on schedule and within budget. Consider the following questions. 1. Does the proposal include at least three references or past performance citations? 2. Are the references or past performance citations relevant to the requirements of the Statement of Work of the RFP? 3. Does the Offeror explain how they were successful on the projects provided as past performance? 4. Does the Offeror apply the past performance to the City requirement in such a way as to demonstrate added value due to experience? **COMMENTS**	
C. KEY PERSONNEL	
In the Management Area, resumes must be provided for all personnel considered key, as required by the RFP. It is highly recommended that the Offeror provide sufficient content and detail to answer completely the following questions. Resumes do not count toward the page limitation. Explain how the key personnel were related to the projects cited as relevant past performance. Consider the following questions. 1. Does the Offeror provide complete resumes, including education, experience, background information, accomplishments, and other pertinent information? 2. Does the Offeror provide resumes for all key personnel, as required by the RFP? 3. Do the resumes demonstrate adequate professional, technical, and management levels to accomplish the work effectively and efficiently? **COMMENTS:**	
Sum of Ratings in Management Area (Add numbers in Sections 2.A., 2.B and 2. C.)	
3. PRICE/COST AREA	
In the Price Area, the Offeror should provide a detailed breakdown of the price for each year of performance. The price must be fully loaded/all-inclusive and include	

unit cost for material, labor, other direct costs (e.g. travel), indirect costs (i.e. overhead and general and administrative costs), and profit/fee. Offers must include sufficient detail to allow insight into the fairness and reasonableness of the price. If the contract type will be T&M, labor categories, labor rates, separated profit, and estimated material costs must be included in detail. In addition, although price may not be the most important factor, it is still very important to the City of Colorado Springs. The Offeror's pricing must be competitive as compared to the budget amount, market pricing in the industry, and the pricing of the other Offerors. Consider the following questions: 1. How does the price compare to the industry competition? 2. If low, is it unrealistically low? 3. If high, is there demonstrated added value for the additional cost? 4. Can you see how the price was built? If so, do the costs look appropriate for the task? 5. Does the Offeror leave applicable costs out of the calculations? For instance, some will say travel is not included and will be an extra cost. This should be considered when comparing to other Offerors. 6. Are there additional costs not addressed that the City would incur if the Offeror were awarded the contract? If so, include those costs when comparing to the budget amount and the competition. **COMMENTS:**	
Total Price/Cost Area (Insert number from Section 3 evaluation above):	
4. PROPOSAL PRESENTATION	
Presentation is an important factor. Offerors should provide a highly professional product, which is complete, accurate, easily understood, and effectively presented. **COMMENTS:**	
EXCEPTIONS PROPOSED	
What (if any) exceptions (redlines to our terms and conditions) were proposed? Are they acceptable? **COMMENTS:**	**Pass/Fail**
INSURANCE EXCEPTIONS PROPOSED	
What (if any) exceptions (redlines to our insurance terms and conditions) were proposed? Are they acceptable? **COMMENTS:**	**Pass/Fail**
TOTAL SCORE – Add Evaluation Scores from Sections 1-4. The sum is the total score.	Total Score:

SECTION VI – APPENDICES

6.0 APPENDICES

Appendix A Price Sheet
Appendix B Scope of Work

APPENDIX A – PRICE SHEET

PLEASE SUBMIT APPENDIX A – PRICE SHEET IN EXCEL FORMAT

PLEASE ENTER TOTAL COST IN BIDNET PRICE SHEET

APPENDIX B – SCOPE OF WORK

B.1 PURPOSE AND INTENT

Provide a complete, operational, and maintainable building automation system (BAS) modernization for the central heating-water system, chilled-water system, principal air-handling unit, supervisory network, and associated field devices. The work shall migrate obsolete controls toward current, supported, open-protocol technology while preserving serviceable equipment designated for reuse.

The successful controls contractor shall furnish all labor, supervision, design, engineering, project management, submittals, controllers, input/output modules, sensors, actuators, interfaces, licenses, programming, graphics, low-voltage wiring, startup, functional testing, documentation, training, and warranty necessary for a complete system, whether or not every incidental item is individually listed.

B.2 PRICE STRUCTURE

Price Structure	Required Treatment
Base	Supervisory/network modernization; heating-water controls; chilled-water controls; AHU controls; graphics, programming, commissioning, training, and closeout.
Alternate One (1)	Replace three existing legacy supervisory JACEs with current Niagara N4-compatible supervisory controllers, if not included in the bidder's base architecture.
Alternate Two (2)	VAV controller modernization by floor, separately priced for basement and Floors 1 through 7.
Unit Prices	Hourly labor rates, material markup, individual controller/device replacement prices and after hours rate

B.3 EXISTING CONDITIONS AND VERIFICATION

A. Existing BAS components may include a Johnson Controls Metasys front end, Tridium Niagara/R2 or N4 supervisory devices, legacy TAC controllers, LonWorks field controllers, BACnet devices, and existing hardwired controls. The owner shall confirm the authoritative supervisory platform during design review.

B. Perform a detailed field survey before submittals. Verify controller quantities, point counts, device condition, actuator type, available transformer capacity, communication topology, wiring condition, valve/damper operation, VFD and equipment interface compatibility, and available panel space.

C. Review existing control drawings, sequences, graphics, databases, and network information made available by the owner.

D. Identify discrepancies before fabrication. Proposal allowances shall not relieve the contractor from providing a functional system for the defined equipment and sequences.

E. Test devices and wiring designated for reuse. Notify the owner in writing of failed items before replacement; replace only through approved change order unless expressly included.

B.4 OPEN-SYSTEM AND INTEROPERABILITY REQUIREMENTS

A. New field controllers shall be current-production, freely programmable BACnet controllers using BACnet/IP or BACnet MS/TP. BACnet Testing Laboratories (BTL) listing is preferred.

B. New supervisory equipment shall communicate with the owner's selected enterprise front end using
documented, non-proprietary protocols. Gateway use shall be disclosed and minimized.

C. The completed installation shall not depend on unsupported LonWorks communications for new work. Existing LonWorks segments may remain temporarily only where expressly approved by the owner and separately identified.

D. Provide all required device, point, driver, supervisor, graphics, history, alarm, and integration licenses. Disclose license limits and all future subscription or renewal costs.

E. Provide owner-level credentials, editable controller programs, graphics source files, databases, backups, and all project-specific intellectual property at closeout.

F. The owner shall have unrestricted access to schedules, alarms, trends, setpoints, graphics, and authorized overrides without a mandatory service agreement.

B.5 SUPERVISORY AND NETWORK ARCHITECTURE

A. Provide one or more current, supported supervisory controllers sized for the Base Bid and identified future expansion. Mount new equipment in listed enclosures adjacent to existing control panels where practical.

B. Maintain the existing JACE panel or other supervisory equipment in service unless replacement is included in the accepted bid or alternate.

C. Integrate the new controls with the owner-designated Metasys, Niagara N4, or other enterprise front end confirmed during design review.

D. Provide BACnet routers, switches, network power supplies, repeaters, and communication wiring required for a reliable system.

E. Provide browser-based user access, scheduling, alarm management, historical trending, adjustable setpoints, equipment summaries, and operator overrides.

F. Configure email alarm routing when the owner supplies an accessible mail service. Coordinate network addressing and cybersecurity requirements with owner IT.

G. Owner/IT shall provide network drops, IP addresses, internet/VPN service, firewall rules, and external remote access infrastructure. The controls contractor shall provide and document BAS-side configuration.

H. Existing and new floor-plan graphics shall be migrated or recreated as necessary. All new system graphics shall display live data, operating mode, commands, statuses, alarms, schedules, trends, and setpoints.

B.6 HEATING WATER SYSTEM – BASE AWARD

B.6.1 Controller and Panel

A. Remove the existing TAC MNL-800 or equivalent legacy controller in the penthouse and install a new programmable BACnet controller with sufficient input/output capacity and spare capacity for the defined system.

B. Reuse the existing enclosure and transformer only after verifying condition, listing, capacity, and code compliance. Reconfigure the panel and provide relays, terminal blocks, power supplies, labels, and accessories as required.

C. Identify, disconnect, test, and re-terminate existing field wiring. Provide new wiring where required for new devices or interfaces.

B.6.2 Controlled and Monitored Equipment

A. Reuse and verify start/stop commands, status relays/current switches, and associated wiring for four boiler pumps and two heating-water primary pumps.

B. Repair or replace the boiler enable relay where specifically identified in the accepted bid; provide BAS enable/disable control and proof/alarm monitoring.

C. Replace six existing well-mounted water-temperature sensors. Reuse serviceable thermowells and control wiring.

D. Provide one new outdoor-air temperature and relative-humidity sensor with weather shield and appropriate mounting.

E. Remove the existing boiler LonWorks interface and provide a compatible BACnet interface. Include manufacturer coordination and new communication wiring. Integrate available operating status, enable, alarm, temperature, setpoint, and diagnostic points.

F. Remove four existing pneumatic boiler-valve actuators and install new electric actuators on the existing valve bodies. Verify torque, stroke, close-off, linkage, signal, power, and fail position. Cap abandoned pneumatic tubing and provide new control and low-voltage power wiring.

B.6.3 Heating Water Sequence

A. Provide schedules, outdoor-air lockout, lead/lag rotation, pump staging, proof-of-flow/status logic, boiler enable, valve control, minimum run/off timers, alarm handling, and failure recovery appropriate to the installed plant.

B. Trend supply/return temperatures, outdoor conditions, pump commands/statuses, boiler enable/status/alarm, valve commands/feedback where available, and operator-adjustable setpoints.

B.7 CHILLED WATER SYSTEM – BASE AWARD

B.7.1 Controller and Panel

A. Provide a dedicated programmable BACnet controller or approved input/output expansion connected to the heating-water controller. The selected arrangement shall provide adequate capacity, serviceability, isolation, and spare points.

B. Reuse the existing enclosure, transformer, relays, current switches, and serviceable wiring after verification; provide all additional panel components required.

B.7.2 Controlled and Monitored Equipment

A. Reuse and verify the start/stop command, status relay/current switch, and associated wiring for one condenser-water pump and one chilled-water pump.

B. Replace four well-mounted temperature sensors: chilled-water supply and return and condenser-water supply and return. Reuse serviceable wells and wiring.

C. Remove the LonWorks interface from each of three chillers and provide one compatible BACnet interface per chiller. Include new communication wiring and manufacturer coordination. Integrate available command, status, alarm, temperature, pressure, capacity, setpoint, and diagnostic points.

D. Remove one pneumatic cooling-tower valve actuator and install a new electric actuator on the existing valve body. Verify torque, stroke, close-off, linkage, signal, power, and fail position. Cap pneumatic tubing and provide control and low-voltage power wiring.

B.7.3 Chiller Optimization

A. Provide a digital optimization sequence coordinating chillers, chilled-water pump, condenser-water pump, cooling-tower valve, and available plant data.

B. Include adjustable staging thresholds and delays, lead/lag rotation, minimum run/off times, demand limiting, equipment availability, alarm-based failure recovery, and orderly shutdown/restart.

C. Submit the detailed sequence for owner review before programming. Provide a plant graphic with live data, setpoints, schedules, trends, alarms, and optimization status.

B.8 AIR HANDLING UNIT – BASE AWARD

B.8.1 Controller and Panel

A. Remove the existing TAC MNL-800 or equivalent controller and provide a programmable BACnet controller with input/output modules sufficient for all listed points, interlocks, and sequences.

B. Reuse the existing panel, transformer, relays, current switches, and serviceable field wiring after verification. Reconfigure and label the panel as required.

B.8.2 Sensors, Safeties and Status Points

A. Replace return-air, mixed-air, preheat-coil discharge-air, and discharge/supply-air temperature sensors; reuse serviceable wiring.

B. Replace the return-air humidity sensor and reuse serviceable wiring.

C. Reuse, test, and calibrate the supply-air static-pressure transmitter and the building-pressure sensing arrangement, including indoor and atmospheric references.

D. Reuse and verify nine existing CO_2 sensors: one in the supply-air duct and one on each level from basement through seventh floor.

E. Reuse and functionally test the supply-air high-pressure limit, return-air high-pressure limit, filter differential pressure switch, and low-temperature limit. Verify alarm and shutdown/interlock actions.

F. Monitor the existing supply- and return-air smoke-detector dry contacts and verify required AHU shutdown interlocks. Fire-alarm certification and life-safety testing remain by the licensed fire-alarm contractor unless specifically included.

B.8.3 Actuators and Equipment Interfaces

A. Remove eight pneumatic damper actuators and install new electric actuators on the existing dampers. Verify damper condition, torque, stroke, linkage, signal, power, and fail position. Cap abandoned pneumatic tubing.

B. Remove one pneumatic AHU heating-water valve actuator and two pneumatic unit-heater valve actuators; install new electric actuators on existing valve bodies and cap abandoned pneumatic tubing.

C. Reuse and verify command/status relays and wiring for two unit-heater fans.

D. Reuse four existing VFDs. Remove each VFD LonWorks card and provide a compatible BACnet interface for each VFD, including new communication wiring and integration of start/stop, speed command, speed feedback, status, alarm, current, frequency, and available diagnostics.

E. Hardwired VFD command, safety, or fallback control may be provided where appropriate, but shall not replace the required BACnet integration unless approved as a listed alternate.

B.8.4 AHU Sequence and Optimization

A. Provide occupied/unoccupied schedules, optimal start/stop, morning warm-up, temperature control, economizer/mixed-air control, ventilation/CO_2 logic, building-pressure control, duct-static-pressure control, filter alarms, freeze protection, smoke shutdown, pressure-limit shutdown, and alarm/failure recovery.

B. Provide supply/discharge-air temperature reset and duct-static-pressure reset based on VAV demand where sufficient terminal data are available. If VAV data are not available under the Base Award, provide an approved fallback strategy and enable full reset logic when the VAV alternate is implemented.

C. Provide an AHU diagrammatic graphic with live values, setpoints, schedules, trends, alarms, operating mode, and manual overrides.

B.9 ALTERNATE ONE (1) LEGACY SUPERVISORY CONTROLLER REPLACEMENT

Provide a separate price to replace three existing Tridium R2 JACEs or other identified obsolete supervisory controllers with current, supported Niagara N4-compatible supervisory controllers, sized for all existing connected systems and planned BACnet expansion.

A. Recreate or migrate existing control logic, schedules, alarms, trends, graphics, users, and integrations.

B. Connect the new supervisory controllers to the owner-designated N4 Supervisor or enterprise platform.

C. Provide all required licenses, routers, switches, drivers, database work, testing, backups, and owner credentials.

D. Sequence replacements to maintain building operation; coordinate any required outages with the owner.

E. Identify whether these alternate duplicates any supervisory equipment included in the Base Award and provide a clear deduct/add relationship.

B.10 ALTERNATE TWO (2) VAV CONTROLLER MODERNIZATION

Provide separate, additive prices by floor for replacement of legacy VAV controllers. Quantities are subject to field verification. Pricing shall be separable so the owner may award any combination of floors.

Area	Reference Quantity
Basement	14
Floor 1	23
Floor 2	27
Floor 3	22
Floor 4	23
Floor 5	23
Floor 6	25
Floor 7	24

A. Provide one new BACnet controller for each VAV, with a new space-temperature sensor, local setpoint adjustment, timed override button, airflow measurement and setpoint, damper command/position, and new discharge-air temperature sensor.

B. Reuse existing control transformers where serviceable and adequately sized.

C. Reuse and control existing baseboard heating valves where applicable. Reference quantity: 26 VAVs, subject to field verification.

D. Reuse existing return-air CO_2 sensors where applicable. Reference quantity: eight VAVs, subject to field verification.

E. Provide BACnet communication wiring along practical existing routes. Bidder shall identify whether BACnet/IP, BACnet MS/TP, or an approved hybrid topology is proposed and include all switches, routers, power supplies, and licenses.

F. Provide graphical floor plans with room temperature, setpoint, occupancy, airflow, damper position, heating command, CO_2 where applicable, alarms, and trends.

G. Use terminal damper position and space-temperature deviation to support AHU discharge-temperature and static-pressure reset optimization.

H. Controllers removed from completed floors shall be turned over to the owner as serviceable spare parts unless the owner directs otherwise.

B.11 PROGRAMMING, GRAPHICS, ALARMS AND TRENDS

A. Submit written sequences of operation and a complete point list for approval before programming.

B. Clearly distinguish measured values, commanded values, network values, and software-calculated points.

C. Provide adjustable setpoints, alarm limits, delays, deadbands, schedules, lead/lag selections, and reset parameters appropriate for owner operation.

D. Configure trends for critical temperatures, humidity, pressures, CO_2, commands, statuses, speeds, alarms, plant staging, and energy-optimization variables. Submit proposed sample intervals and retention periods.

E. Provide operator graphics for the network, HWS, CHWS, AHU, and awarded VAV floors. Graphics shall use consistent navigation, naming, units, colors, and alarm conventions.

F. Provide safe response to loss of power, loss of communication, failed sensors, failed proof, equipment alarms, and supervisory-controller restart.

G. Configure email alarm routing when the owner supplies an accessible mail service. Coordinate network addressing and cybersecurity requirements with owner IT.

B.12 ELECTRICAL AND INSTALLATION REQUIREMENTS

A. Provide all Class 2/low-voltage control wiring and low-voltage actuator power wiring. Provide transformers and power supplies required for controls equipment.

B. New 120-volt branch circuits, disconnects, and full line-voltage power wiring are by the electrical contractor unless expressly included. The controls bidder shall identify every required line-voltage connection.

C. Interior exposed wiring shall be installed in EMT. Concealed wiring may use code-compliant plenum-rated cable where permitted. Wiring above accessible ceilings shall be independently supported and installed neatly.

D. Provide grounding, bonding, surge protection recommended by the controls manufacturer, and network isolation required for reliable operation. Identify UPS or enhanced lightning protection as a separately priced option if not included.

E. Provide permanent labels for panels, controllers, devices, terminals, cables, and network segments. Update panel directories and drawings.

F. Comply with applicable electrical, mechanical, building, fire, energy, and cybersecurity requirements.

B.13 COORDINATION AND WORK BY OTHERS

A. Coordinate equipment-interface installation with boiler, chiller, VFD, mechanical, electrical, fire-alarm, IT, and test-and-balance representatives as applicable.

B. Mechanical contractor shall install new piping accessories, valve bodies, thermowells, pressure taps, flow meters, and similar hydronic components unless specifically included in the controls bid.

C. Electrical contractor shall provide new line-voltage branch circuits and connections unless specifically included.

D. Licensed fire-alarm contractor shall provide, certify, and test life-safety devices and fire-alarm programming. Controls contractor shall provide the specified monitoring and HVAC interlocks.

E. Owner shall provide reasonable equipment access, existing documentation in its possession, network information, and timely review of submittals and sequences.

B.14 SUBMITTALS

A. Control drawings showing panel layouts, controller architecture, communication risers, device locations, wiring diagrams, control schematics, and termination details.

B. Complete point lists identifying physical/network points, ranges, units, alarm requirements, trend requirements, and graphic assignment.

C. Product data for supervisory controllers, field controllers, I/O modules, sensors, actuators, communication interfaces, transformers, routers, and switches.

D. Actuator selection calculations confirming torque, close-off, stroke, linkage, signal, power, and fail position.

E. Detailed sequences of operation and a list of owner-adjustable parameters.

F. Software architecture, license schedule, cybersecurity/network requirements, and disclosure of recurring fees.

G. Proposed outage plan, project schedule, and commissioning plan.

B.15 TESTING AND COMMISSIONING

A. Perform point-to-point verification of every physical and network input/output.

B. Calibrate sensors and document final values. Stroke actuators through their full range and verify normal and fail positions.

C. Verify pump, fan, VFD, boiler, chiller, valve, damper, safety, smoke, pressure-limit, freeze-protection, alarm, schedule, trend, and restart functions.

D. Functionally test each sequence under simulated or actual operating conditions, including lead/lag rotation, staging, failure recovery, and optimization logic.

E. Mechanical equipment factory startup remains by others unless listed, but the controls contractor shall participate in integrated controls startup and prove BAS commands, feedback, and interlocks.

F. Provide a commissioning report listing tests, results, deficiencies, corrections, and final acceptance status.

B.16 CLOSEOUT DOCUMENTATION AND TRAINING

A. Provide as-built control drawings, final point lists, final sequences, network addressing, device inventory, licenses, product manuals, warranty information, and commissioning reports.

B. Provide editable source programs, supervisor databases, graphic files, backups, passwords, and recovery instructions in native and PDF formats as applicable.

C. Provide at least two hours of on-site owner/operator training after substantial completion. Cover navigation, schedules, setpoints, alarms, trends, overrides, optimization, basic troubleshooting, and backup/restore procedures.

D. Record the training session or provide supplemental training material if requested as an alternate.

B.17 WARRANTY

A. Provide a one-year parts-and-labor warranty beginning at owner acceptance of substantial completion.

B. Correct defective workmanship, failed furnished components, programming errors, graphic errors, and integration deficiencies at no additional cost during the warranty period.

C. State normal and emergency response times, remote-support availability, shipping limitations, and exclusions in the bid.

D. Warranty completion shall not require execution of a continuing service agreement.

B.18 GENERAL CLARIFICATIONS AND EXCLUSIONS

Unless expressly included by the bidder, the following are excluded from the Base Bid:

A. New control dampers, louvers, backdraft dampers, valve bodies, thermowells, airflow stations, meters, flow meters, and piping modifications, except actuator and sensor work specifically identified.

B. New smoke detectors, smoke dampers, fire dampers, combination fire/smoke dampers, and fire-alarm programming or certification.

C. Cutting, patching, painting, hazardous-material remediation, structural work, and access doors.

D. New line-voltage branch circuits and equipment power wiring above controls-level wiring defined in this scope.

E. Independent third-party commissioning and test-and-balance work.

F. Repair or replacement of failed existing devices or wiring designated for reuse, except where specifically included or authorized by change order.

G. Overtime, after-hours, weekend, and holiday work unless separately priced.

H. Exclusions shall not eliminate incidental controls work reasonably necessary to deliver the specified functional result. Any bidder exclusion that conflicts with a specific requirement above shall be identified as a deviation.

B.19 PROPOSAL REQUIREMENTS

A. Provide a lump-sum Base Award and separate prices for each alternate and each VAV floor.

B. Identify the proposed controls manufacturer, controller families, supervisory architecture, BACnet topology, and enterprise front-end integration method.

C. Provide an equipment list with quantities and a licensing schedule.

D. Provide a preliminary schedule, anticipated outages, lead times, and project duration.

E. List assumptions, exclusions, substitutions, deviations, work by others, taxes, bonds, wage assumptions, and proposal validity period.

F. Disclose proprietary tools, mandatory cloud services, subscriptions, recurring license fees, and service agreements.

G. State warranty terms, service response, hourly rates, material markup, and after-hours rates.

H. Complete the compliance schedule below. Blank responses will be interpreted as exceptions requiring clarification.

I. Alarm detection and City notification – Ability to detect configurable temperature, pressure, humidity, equipment-status, and communication changes and automatically email designated City

personnel. Evaluate adjustable thresholds, time delays, escalation, repeat notifications, restoration-to-normal messages, alarm history, testing, and owner administration.

J. Customer Service and response – Availability of local support, normal and emergency response times, remote diagnostic capability, after-hours support, technician qualifications, warranty support, escalation procedures, and references from comparable BAS projects.

K. Project timeline and implementation plan – Proposed start and completion dates, equipment lead times, major milestones, outage planning, sequencing, commissioning duration, schedule risks, and the contractor's ability to maintain building operation during the work